

Preston Corporation Act, 1952

15 & 16 GEO. 6 & 1 ELIZ. 2 Ch. xlvii

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1871

Received of the
Hon. Secy of the Navy
the sum of \$1000.00
for the purchase of
land for the
Navy Yard at
San Francisco

1872

Received of the
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San Francisco



CHAPTER xlvii

An Act to authorise the corporation of Preston to supply heat to make further provision in reference to the Ribble Navigation water and transport undertakings of the Corporation and the health improvement local government and finances of the borough of Preston and for other purposes.

[1st August 1952.]

WHEREAS—

(1) The county borough of Preston (hereinafter referred to as "the borough") is a municipal borough under the management and local government of the mayor aldermen and burgesses of the borough acting by the council (hereinafter referred to as "the Corporation"):

(2) It is expedient to empower the Corporation to supply heat by means of hot water or steam within the borough:

(3) It is expedient to confer further powers on the Corporation in regard to their Ribble Navigation water and transport undertakings:

(4) It is expedient that further and better provision should be made with reference to streets sanitation and buildings and for the local government and improvement of the borough and that the powers of the Corporation in relation thereto should be enlarged and extended:

(5) It is expedient to make further provision with regard to the finances of the borough as by this Act provided:

(6) It is expedient that the other provisions contained in this Act be enacted:

(7) The purposes of this Act cannot be effected without the authority of Parliament:

(8) In relation to the promotion of the Bill for this Act the requirements of the Local Government Act 1933 have been observed:

May it therefore please Your Majesty that it may be enacted and be it enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

PART I

PRELIMINARY

Short and
collective
titles.

1.—(1) This Act may be cited as the Preston Corporation Act 1952.

(2) So much of this Act as relates to water shall be included among the enactments which may be cited together as the Preston Corporation Water Acts and Order 1853 to 1952.

(3) The Ribble Navigation Acts 1853 to 1947 and so much of this Act as relates to the Ribble Navigation may be cited together as the Ribble Navigation Acts 1853 to 1952.

Division of
Act into Parts.

2. This Act is divided into Parts as follows:—

Part I.—Preliminary.

Part II.—Streets.

Part III.—Sanitation and buildings.

Part IV.—Nuisances.

Part V.—Food.

Part VI.—Parks cemeteries and other municipal property.

Part VII.—Sale of wood fuel.

Part VIII.—Establishments for massage or special treatment.

Part IX.—Heating undertaking.

Part X.—Finance and rating.

Part XI.—Miscellaneous.

Part XII.—General.

Interpretation.

3.—(1) In this Act the several words and expressions to which meanings are assigned by sections 90 110 and 343 of the Public Health Act 1936 have the same respective meanings unless there be something in the subject or context repugnant to such construction.

(2) In this Act unless the subject or context otherwise requires the following expressions have the meanings hereby respectively assigned to them:—

“ Act of 1933 ” means the Local Government Act 1933 ;

“ Act of 1936 ” means the Public Health Act 1936 ;

“ Act of 1947 ” means the Preston Corporation Act 1947 ;

- “appointed day” has the meaning which is assigned to it by section 108 (The appointed day) of this Act ;
- “authorised security” means any mortgage stock bond or other security which the Corporation are for the time being authorised to grant create or issue or upon or by means of which the Corporation are for the time being authorised to raise money ;
- “borough” means the county borough of Preston ;
- “commission” means the British Transport Commission and any reference to the commission in relation to any functions of the commission which are for the time being delegated to an executive in pursuance of section 5 of the Transport Act 1947 shall be construed as a reference to that executive ;
- “contravention” includes a failure to comply and “contravene” shall be construed accordingly ;
- “Corporation” means the mayor aldermen and burgesses of the borough acting by the council ;
- “council” means the council of the borough ;
- “daily penalty” means a penalty for each day on which any offence is continued after conviction ;
- “electric line” has the same meaning as in the Electric Lighting Act 1882 ;
- “electricity authority” means the British Electricity Authority ;
- “electricity board” means the North Western Electricity Board ;
- “enactment” includes any enactment in this Act or in any general or local Act and any order byelaw or regulation for the time being in force within the borough ;
- “fittings” in Part IX (Heating undertaking) of this Act includes air heaters water heaters radiators meters fittings mains pipes taps cocks valves ferrules and other works and apparatus used for or in connection with the supply or utilisation of heat by means of hot water or steam under the said Part IX ;
- “food” has the same meaning as in section 100 of the Food and Drugs Act 1938 ;
- “gas board” means the North Western Gas Board ;
- “general rate fund” and “general rate” mean respectively the general rate fund and the general rate of the borough ;
- “heat” means heat supplied or intended to be supplied by means of hot water or steam ;

PART I
—cont.

“ heating undertaking ” means the undertaking authorised by Part IX (Heating undertaking) of this Act and includes all lands stations boiler-houses properties works buildings machinery plant mains pipes wires posts ducts fittings appliances easements rights powers and privileges for the time being belonging to or held used or enjoyed by the Corporation for or in connection with the provision storage transmission distribution and supply of heat ;

“ Lands Clauses Acts ” means the Lands Clauses Acts as modified by the Acquisition of Land (Assessment of Compensation) Act 1919 by Part V of the Town and Country Planning Act 1947 by the Lands Tribunal Act 1949 and by this Act ;

“ main ” in Part IX (Heating undertaking) of this Act includes mechanical and thermal protection for a main and apparatus used in connection with a main ;

“ Minister ” means the Minister of Housing and Local Government ;

“ open space ” has the same meaning as in the Open Spaces Act 1906 ;

“ statutory securities ” means any securities in which trustees are for the time being authorised by law to invest trust money and any mortgages bonds debentures debenture stock stock or other securities created by a local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery ;

“ telegraphic line ” has the same meaning as in the Telegraph Act 1878 ;

“ town clerk ” “ medical officer ” “ surveyor ” and “ sanitary inspector ” mean respectively the town clerk the medical officer of health the surveyor and any sanitary inspector of the borough and include any person duly appointed by the Corporation to discharge temporarily the duties of any of those officers ;

“ trunk road ” has the same meaning as in the Trunk Roads Acts 1936 and 1946.

(3) The local Acts in force within the borough shall have effect as if the references therein to the expression “ statutory securities ” as defined thereby were omitted and references to the expression “ statutory securities ” as defined by this section were substituted therefor.

(4) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied extended amended or varied by or by virtue of any subsequent enactment including this Act.

PART II

STREETS

General

4.—(1) In this Part of this Act the following expressions have Interpretation
the meanings hereby respectively assigned to them:— of Part II.

“classified road” has the same meaning as in the Local Government Act 1929;

“structure” means a wall fence hoarding or similar erection but for the purpose of this definition the expression “wall” does not include a wall forming part of a permanent building.

(2) For the purposes of this Part of this Act the construction of a building shall be deemed to have begun at the time when the clearing of the site or the excavation for the foundations thereof began.

Improvement of streets

5.—(1) Subject to the provisions of this section the Corpora- Trees grass
tion shall have power— verges and
gardens.

(a) to plant trees or shrubs in any street in the borough or in tubs placed by them for the purpose in any such street;

(b) to provide baskets of plants or flowers and attach the same to posts or standards in any such street;

(c) to lay out grass verges or gardens in any such street;

(d) to erect and maintain guards or fences and otherwise do anything expedient for the maintenance or protection of such trees shrubs tubs baskets grass verges or gardens;

(e) to cut down any such tree or shrub to remove any such tub or basket and to abolish any such grass verge or garden or enlarge or diminish the area thereof;

(f) by notice to prohibit persons from entering upon or causing or permitting horses cattle or vehicles to enter upon any such grass verge which is maintained in an ornamental condition or mown or any such garden:

Provided that the Corporation shall not under the powers of paragraph (b) of this subsection attach a basket to any post or standard (other than a post or standard provided by them) except with the consent of the owner thereof.

(2) Any such notice as is referred to in paragraph (f) of the foregoing subsection shall be conspicuously posted on or in proximity to the grass verge or garden to which it relates and if any person contravenes a notice so posted he shall be liable to a penalty not exceeding twenty shillings.

PART II
—cont.

(3) Subject to the provisions of this subsection the powers conferred by this section shall not be exercisable except in a street maintainable by and vested in the Corporation or upon land so vested which forms part of such a street:

Provided that when carrying out in any street or any part thereof any works under the Private Street Works Act 1892 the Corporation may exercise any such power in the street or that part thereof with the consent of the majority in number and rateable value of the owners of land abutting on the street or that part thereof and treat any expenses incurred in so doing as part of the expenses of carrying out the said works.

(4) The powers conferred by this section shall not be exercised so as to hinder the reasonable use of the street by any person entitled to the use thereof or so as to be a nuisance or injurious to the owner or occupier of any land or premises abutting on the street.

(5) Section 1 of the Roads Improvement Act 1925 shall cease to apply to the Corporation and anything done by the Corporation under that section before the passing of this Act shall be deemed to have been done under this section.

(6) Nothing in this section shall affect the duty of the Corporation to provide footpaths or grass or other margins under section 58 of the Road Traffic Act 1930.

Variation
of width of
carriageways
and footways.

6.—(1) Subject to the provisions of this section the Corporation may vary the relative widths of the carriageway and footway or footways in any street in the borough being a highway repairable by the inhabitants at large.

(2) The Corporation shall not exercise the powers of this section in relation to a trunk road without the consent of the Minister of Transport.

(3) At least twenty-one days before commencing any work under this section which will materially reduce the width of the carriageway or any footway of a classified road the Corporation shall send notice of the proposed work to the Minister of Transport.

(4) The Corporation shall not exercise the powers of this section in relation to so much of any street as is situate upon a bridge over any railway canal or inland navigation or upon the approaches to any such bridge without the consent in writing of the railway canal or inland navigation undertakers concerned:

Provided that such consent shall not be unreasonably withheld and any question whether or not it is unreasonably withheld shall be determined by the Minister of Transport.

7.—(1) Subject to the provisions of this section the Corporation may affix to any building in the borough such lamps brackets pipes electric lines and apparatus (hereafter in this section referred to as “attachments”) as may be required for the purposes of street lighting. Attachment of street lamps brackets etc.

(2) The Corporation shall not affix attachments to a building under this section without the consent of the owner of the building:

Provided that where in the opinion of the Corporation any consent required under this subsection is unreasonably withheld they may apply to the appropriate authority who may either allow the attachments subject to such conditions (if any) as to rent or otherwise as the authority thinks fit or disallow the attachments.

(3) Where any attachments have been affixed to a building under this section and the person who gave the consent or who was the owner of the building when the attachments were allowed by the appropriate authority ceases to be the owner thereof the subsequent owner may give to the Corporation notice requiring them to remove the attachments and subject to the provisions of this subsection the Corporation shall comply with the requirement within three months after the service of the notice:

Provided that where in the opinion of the Corporation any such requirement is unreasonable they may apply to the appropriate authority who may either annul the notice subject to such conditions (if any) as to rent or otherwise as the authority thinks fit or confirm the notice subject to such extension (if any) of the said three months as the authority thinks fit.

(4) Where any attachments have been affixed to a building under this section the owner of the building may require the Corporation at their own expense temporarily to remove the attachments where necessary during any reconstruction or repair of the building.

(5) If the owner of any building suffers damage by or in consequence of the affixing to the building of any attachments under the powers of this section he shall be entitled to be paid by the Corporation compensation to be determined in case of dispute in accordance with the Acquisition of Land (Assessment of Compensation) Act 1919.

(6) In this section the following expressions have the meanings hereby respectively assigned to them:—

“appropriate authority” means a court of summary jurisdiction except that in relation to a building mentioned in the first column of the following table it means the

PART II
—cont.

Minister specified in relation thereto in the second column of that table:—

Building forming part of an aerodrome licensed pursuant to an order made under the Civil Aviation Act 1949 or any enactment repealed by that Act.

The Minister of Civil Aviation.

Building which—

The Minister.

(i) is subject to a building preservation order made under section 29 of the Town and Country Planning Act 1947; or

(ii) is included in a list of buildings of special architectural or historic interest compiled or approved under section 30 of the last-mentioned Act by the Minister referred to in that section; or

(iii) is alleged by the owner thereof to be a building of special architectural or historic interest.

Building owned by railway canal dock or inland navigation undertakers.

The Minister of Transport.

Building owned by electricity or gas undertakers.

The Minister of Fuel and Power.

“building” includes a structure and a bridge or aqueduct over a street;

“owner” means—

(a) in relation to a building occupied under a tenancy for a term of years whereof five years or more remain unexpired and not forming part of such an aerodrome as aforesaid the occupier of the building;

(b) in relation to a building forming part of such an aerodrome as aforesaid the person having control of the aerodrome;

(c) in relation to any other building the person who is receiving the rack-rent or who would receive the rack-rent if the building were let at a rack-rent;

and the expression “owned” shall be construed accordingly.

Protection and repair of streets

Crossings over footways.

8.—(1) Where the owner or occupier of any premises in the borough which abut on any street repairable by the inhabitants at large habitually uses or permits to be used any grass verge or kerbed or paved footway in the street as a crossing for any horse or horse-drawn or mechanically propelled vehicle (other

than a motor-cycle) in passing to and from those premises the Corporation may by notice to the owner or occupier (as the case may be) either—

PART II
—cont.

- (a) require the construction across the grass verge or footway of a carriage-crossing constructed of such materials and in such manner as may be specified in the notice ; or
- (b) in the case of a footway require it to be strengthened or adapted in such manner as may be so specified ; or
- (c) impose such other reasonable conditions on the use of the grass verge or footway as a crossing as aforesaid as may be so specified :

Provided that the Corporation shall not exercise the powers of this subsection in relation to the grass verge or footway of a trunk road without the consent of the Minister of Transport or otherwise than in accordance with any conditions attached by him to his consent.

(2) Any person aggrieved by a requirement of or a condition imposed by the Corporation under the preceding subsection may appeal to a court of summary jurisdiction.

(3) If the Corporation make any requirement under paragraph (a) or paragraph (b) of subsection (1) of this section such works as may be necessary to secure compliance with that requirement shall be executed by the Corporation and the Corporation may recover the expenses of so doing from the owner or occupier.

(4) If the Corporation impose any condition under paragraph (c) of subsection (1) of this section any person who knowingly uses the grass verge or footway as a crossing as aforesaid or permits it to be so used in contravention of that condition shall be liable to a penalty not exceeding five pounds.

(5) Nothing in this section shall impose on the owner or occupier any obligation to maintain any crossing constructed or footway strengthened or adapted in pursuance of a requirement made under this section.

(6) Section 18 of the Public Health Acts Amendment Act 1907 shall not be declared to be in force in the borough but the following provisions of this subsection shall have effect as respects streets in the borough which are repairable by the inhabitants at large:—

- (a) Any person desiring to form a carriage-crossing across a grass verge or footway in any such street or to strengthen or adapt a part of any such footway as a carriage-crossing shall apply in writing to the Corporation giving particulars of the work proposed ;

PART II
—cont.

- (b) The Corporation may approve the work proposed either with or without modifications or propose alternative work or reject the application:

Provided that the Corporation shall not exercise the powers conferred by this paragraph as respects the grass verge or footway of a trunk road without the consent of the Minister of Transport;

- (c) The Corporation shall give the applicant notice of their decision under the last preceding paragraph and if they approve the work proposed or propose alternative work shall furnish him with an estimate of the cost of the work as approved or proposed by them;

- (d) The applicant may deposit with the Corporation the amount of the said estimate and require them to execute the work as approved or proposed by them but shall not himself execute any such work;

- (e) As soon as practicable after such a deposit has been made the Corporation shall execute the work as approved or proposed by them and any difference between the sum deposited and the actual cost of the work shall be paid to or by the Corporation by or to the applicant as the case may require;

- (f) References in this subsection to an estimate of the cost of the work shall include an estimate of the cost of moving the apparatus of any statutory undertakers and any reference to works approved or proposed by the Corporation shall include the moving of any such apparatus.

(7) The expenses incurred or payable by the Corporation in moving the apparatus of any statutory undertakers shall be deemed to be part of the expenses payable under subsection (3) of this section and part of the cost of the work for the purposes of subsection (6).

(8) The code in Part II of the Public Utilities Street Works Act 1950 (which relates to cases where apparatus is affected by road works) shall have effect as if the works approved proposed or required by this section were mentioned in paragraph (a) of subsection (1) of section 21 of the said Act of 1950.

Miscellaneous

Temporary
stoppage of
streets.

9. For the purpose of—

- (a) making any new street for the purpose of which premises have been purchased under section 154 of the Public Health Act 1875; or
- (b) providing a parking place for vehicles under section 68 of the Public Health Act 1925;

the Corporation may break up and for any reasonable time stop up divert and interfere with any street and divert the traffic therefrom and prevent persons using it:

Provided that the Corporation shall not exercise the powers of this section—

- (i) as respects any trunk road without the consent of the Minister of Transport ; or
- (ii) so as to deprive foot-passengers bona fide going to or from any building or land in the street of reasonable access to the building or land ; or
- (iii) so as to obstruct or interfere with the access to or exit from any station dock wharf or depot of any railway dock canal inland navigation or passenger road transport undertakers ; or
- (iv) so as to interfere with the access to any mains pipes cables or other apparatus of the electricity board or the gas board.

10.—(1) The owner or occupier of any premises situated under or abutting on a pavement forming part of a street in the borough may with the consent of the Corporation provide means for the admission of light or air to the premises through the pavement. Pavement lights and ventilators.

(2) (a) In giving their consent under this section the Corporation may attach thereto such terms and conditions as they think fit and such terms and conditions shall be binding on successive owners and occupiers.

(b) Any such terms and conditions shall be treated as a local land charge for the purposes of the Land Charges Act 1925.

(3) Anything done before the passing of this Act which would have been lawfully done under this section if done after the passing thereof is hereby ratified.

11.—(1) The Corporation may on the occasion of any public festivity cause flag-poles and pylons to be erected in any street in the borough for the purpose of displaying decorations and may for that purpose provide sockets or slots in or under the surface of any such street. Decorations in streets.

(2) If any person wilfully removes or damages any flag-pole or pylon erected under this section he shall be liable to a penalty not exceeding five pounds.

(3) The Corporation shall not exercise the powers of this section in a trunk road without the consent of the Minister of Transport.

12.—(1) After the passing of this Act no part of any building (including the foundations) shall except with the consent of the Corporation be constructed so as to extend under the footway of any street in the borough at a less depth than six feet below the surface of such footway. Restriction on buildings under footways.

PART II
—cont.

(2) Any consent under this section may be given subject to such conditions as to the construction of a building as may be specified therein.

(3) Any person aggrieved by the refusal of the Corporation to give their consent under this section or by any conditions attached to such consent may appeal to a court of summary jurisdiction.

(4) Any person who shall construct a building in contravention of the provisions of this section shall be liable to a penalty not exceeding twenty pounds.

(5) Where any person is convicted of an offence under subsection (1) of this section the court by which he was convicted may order him within such time as may be fixed by the order to remove or alter the part of the building so that it no longer contravenes the provisions of this section and if he fails to comply with the order—

(a) he shall be liable to a penalty not exceeding forty shillings for each day on which the failure continues; and

(b) the Corporation after giving him notice of their intention so to do may remove the part of the building concerned and recover from him the expenses incurred by them in so doing:

Provided that he shall not be liable to a penalty for any day after that on which the Corporation have given him notice of their intention to remove the part of the building.

(6) Nothing in this section shall extend or apply to the construction of any building (not being a house or a building to be used as offices) by any railway canal or inland navigation undertakers the electricity board or the gas board in exercise of their statutory powers.

Removal of
trees etc. from
streets.

13. If any tree or structure or any part thereof shall fall on or across any street in the borough the Corporation may remove the same and recover the reasonable cost of so doing from the owner thereof or if such owner was not in beneficial occupation of the land upon which such tree or structure or any part thereof was situated from the occupier thereof.

Removal of
furniture etc.
from streets.

14.—(1) The Corporation may remove and store any furniture articles goods or other materials which may have been placed or left (whether accidentally or otherwise) in or upon any street in the borough and which—

(a) may have remained there for more than forty-eight hours; or

(b) are causing or are likely to cause an obstruction;

and the Corporation shall not be liable for any loss or damage caused by such removal or storage.

(2) If the Corporation remove any furniture articles goods or other materials under the powers of this section—

PART II
—cont.

(a) they shall if and as soon as it is reasonably practicable so to do notify the person whom they believe to be the owner thereof ; and

(b) they shall not exercise any power to sell any such furniture articles goods or other materials whether under section 276 of the Act of 1936 or otherwise until after the expiration of fourteen days from the date of such notification or three months from the day on which they removed the furniture articles goods or other materials whichever shall first occur.

15.—(1) No person shall in the borough mix mortar cement plaster or any like substance in any street repairable by the inhabitants at large except upon such board or in such receptacle as will protect the street from such mortar cement plaster or substance : Mixing of mortar etc. in streets.

Provided that this section shall not apply to the mixing in any street of mortar cement plaster or like substance for the purposes of making up maintaining repairing altering or improving such street.

(2) Any person who shall contravene the provisions of this section shall be liable to a penalty not exceeding forty shillings.

PART III

SANITATION AND BUILDINGS

Sewers drains and sanitary conveniences

16. For the purpose of facilitating the disposal of sewage the powers of the Corporation under section 157 of the Public Health Act 1875 shall extend to the making of byelaws requiring any person constructing a new street in the borough to provide separate sewers for the drainage of foul water and surface water. Separate sewers for foul water and surface water.

17.—(1) If any drain or private sewer in the borough—

(a) is not sufficiently maintained and kept in good repair to the satisfaction of the Corporation ; and

Power to repair drains and private sewers.

(b) can in the opinion of the Corporation be sufficiently repaired at a cost not exceeding fifty pounds ;

the Corporation may after giving not less than seven days' notice to the person affected cause the drain or sewer to be repaired and subject to the next following subsection recover the expenses of so doing so far as they do not exceed fifty pounds from the person affected :

PART III
—cont.

Provided that where the said expenses do not exceed two pounds the Corporation may if they think fit remit the payment thereof.

(2) In any proceedings under this section the court may inquire—

(a) whether the drain or sewer in question required repair and whether the work done by the Corporation was reasonable ; and

(b) whether any apportionment made by the surveyor was fair ;

and the court may make such an order concerning the expenses or their apportionment as appears to the court to be just :

Provided that the court shall not revise any apportionment unless it is satisfied that all persons affected thereby have had due notice of the proceedings and an opportunity of being heard.

(3) In this section the expression “ person affected ” means the owner of any premises which are drained by means of the drain or private sewer referred to in subsection (1) of this section or the owner of the private sewer so referred to :

Provided that where there is more than one person affected notice shall be served on all persons affected and the expenses incurred by the Corporation under this section shall be apportioned between all persons affected in such proportions as the surveyor may determine.

Penalty for
improper
construction
or repair of
water-closet
etc.

18.—(1) If a water-closet drain or soil pipe in the borough is so constructed or repaired as to be prejudicial to health or a nuisance the person who undertook or executed the construction or repair thereof shall unless he shows that the prejudice to health or the nuisance could not have been avoided by the exercise of reasonable care be liable to a penalty not exceeding twenty pounds.

(2) A person charged with an offence under this section (hereafter in this section referred to as “ the original defendant ”) shall upon information duly laid by him and on giving to the prosecutor not less than three clear days’ notice of his intention be entitled to have any other person being his agent servant or workman to whose act or default he alleges the offence was due brought before the court at the time appointed for the hearing of the charge and—

(a) if after the commission of the offence has been proved the original defendant proves that the offence was due to the act or default of that other person that other person may be convicted of the offence ; and

(b) if the original defendant further proves that he used all due diligence to secure that the water-closet drain or soil pipe in question was so constructed or repaired as not to be prejudicial to health or a nuisance he shall be acquitted of the offence.

(3) Where the original defendant seeks to avail himself of the provisions of subsection (2) of this section—

(a) the prosecutor as well as the person whom the original defendant charges with the offence shall have the right to cross-examine the original defendant if he gives evidence and any witness called by him in support of his pleas and to call rebutting evidence; and

(b) the court may make such order as it thinks fit for the payment of costs by any party to the proceedings to any other party thereto.

19. For the purposes of section 44 of the Act of 1936 any part of a building in the borough being a part occupied as a dwelling shall be treated as a separate building and where two or more parts of such a building are occupied as dwellings by separate families each such part shall be treated as a separate building: Closet accommodation for separate dwellings.

Provided that where any part of a building has been let for occupation as a separate dwelling without the consent in writing of the owner of the building the person so letting that part of the building shall be deemed to be the owner.

20.—(1) The Corporation may by notice require a contractor engaged in or upon any building operations or the construction or reconstruction of any works in the borough within such time as may be specified in the notice— Sanitary conveniences for persons employed on construction work.

(a) to provide in connection therewith sufficient and satisfactory accommodation in the way of sanitary conveniences for the accommodation of the workpeople employed thereon; and

(b) where persons of both sexes are employed in or in connection with the operations or works to provide separate accommodation as aforesaid for persons of each sex;

if it is reasonably practicable so to do:

Provided that this section shall not apply to building operations or works to which section 107 or section 108 of the Factories Act 1937 applies.

(2) The provisions of section 290 of the Act of 1936 shall apply in relation to notices given under this section as they apply in relation to the notices mentioned in subsection (1) of that section.

PART III
—cont.Ruinous and
dilapidated
buildings and
neglected sites.*Buildings and structures*

21.—(1) Paragraphs (b) and (ii) of subsection (1) of section 58 of the Act of 1936 and so much of subsection (2) of that section as relates to those paragraphs shall cease to have effect in the borough and the following provisions of this section shall have effect in lieu thereof.

(2) Where a building or part of a building in the borough is by reason of its ruinous or dilapidated condition seriously detrimental to the amenities of the neighbourhood the Corporation may by notice require the owner thereof within a reasonable time specified in the notice—

(a) to execute such works of repair or restoration ; or

(b) if he so elects to take such steps for demolishing the building or any part thereof and removing any rubbish or other material resulting from or exposed by the demolition ;

as may be necessary for remedying the cause of complaint.

(3) Where rubbish or other material resulting from or exposed by the demolition or collapse of a building or part of a building in the borough is lying on the site of the building or that part thereof or on any land occupied with the building and by reason thereof the site or land is in such a condition as to be seriously detrimental to the amenities of the neighbourhood the Corporation may by notice require the owner of the site or land within a reasonable time specified in the notice to take such steps for removing the rubbish or material as may be necessary for remedying the cause of complaint.

(4) The provisions of section 290 of the Act of 1936 shall apply in relation to notices given under this section as they apply in relation to the notices mentioned in subsection (1) of that section.

(5) Notwithstanding anything in subsection (3) of section 276 of the Act of 1936 as applied by this Act that section shall apply to all rubbish or other material removed by the Corporation under this section.

(6) In this section the expression “ building ” includes any structure.

Power to order
alteration of
domestic
chimneys.

22.—(1) If a court of summary jurisdiction is satisfied upon a complaint by the Corporation that any smoke gas or vapour from any chimney flue or pipe of a building or structure forming part of or within the curtilage of a house in the borough is prejudicial to the health of any of the inhabitants of the borough or a nuisance the court may make an order requiring the owner of the chimney flue or pipe within such time as may be specified in the order—

(a) to cause it to be raised to a height so specified ; or

(b) to cause such other means for remedying the cause of complaint to be adopted as the court thinks fit:

PART III
—cont.

Provided that the court shall not make an order under this section unless it is satisfied that the work to be done in pursuance of the order will not involve an expenditure exceeding fifty pounds.

(2) If any person fails to comply with an order made under this section he shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

23.—(1) No person shall in or in connection with any house shop or office in the borough construct without the consent of the Corporation any cellar or room the floor level of which is lower than the ordinary level of the subsoil water on under or adjacent to the site of the house shop or office. Cellars and rooms below subsoil water level.

(2) Any consent under this section may be given subject to such conditions as to the construction or use of the premises as may be specified therein and any such conditions shall be binding on successive owners of the house shop or office.

(3) Any person aggrieved by the refusal of the Corporation to give their consent under this section or by any conditions attached to such consent may appeal to a court of summary jurisdiction.

(4) If any person constructs a cellar or room in contravention of subsection (1) of this section or any conditions attached to any consent under this section—

(a) he shall be liable to a penalty not exceeding twenty pounds; and

(b) the Corporation may by notice require him within such reasonable time as may be specified in the notice either to alter the cellar or room so that its construction will no longer contravene the said subsection or conditions or if he so elects to fill it in or otherwise make it unusable and if he fails to comply with any such notice the Corporation may themselves fill in the cellar or room or otherwise make it unusable and recover from him the expenses of so doing.

(5) If any person uses a cellar or room in contravention of any such conditions he shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

(6) The provisions of the last two foregoing subsections shall have effect subject to the provisions of the Land Charges Act 1925 as to the avoidance for want of registration as a local land

PART III
—cont.

charge of any prohibition or restriction imposed by virtue of any such conditions.

(7) Nothing in this section shall apply to the construction of any cellar or room in connection with any shop or office which forms part of a railway station.

As to defective
premises.

24.—(1) Where the Corporation are satisfied that—

- (a) any house in the borough or the roof of any building in the borough is in such a state (hereafter in this section referred to as a “defective state”) as to be prejudicial to health or a nuisance; and
- (b) having regard to all the circumstances unreasonable delay in remedying the defective state would be occasioned by following in relation to such house or roof (hereafter in this section referred to as “the premises”) the procedure prescribed in sections 93 to 95 of the Act of 1936;

the Corporation may (instead of serving an abatement notice as required by section 93 of the Act of 1936) serve upon the person upon whom it would otherwise have been appropriate under the said section 93 to serve such an abatement notice a notice to the effect that the Corporation intend to remedy the defective state of the premises themselves and specifying the defects which they intend to remedy.

(2) Not later than the end of the seventh day after the Corporation have served a notice under subsection (1) of this section the person upon whom such notice was served may serve a counter-notice upon the Corporation stating that he intends to remedy the defective state of the premises and if such person having duly served such counter-notice commences within such time thereafter as the Corporation consider reasonable to execute such works and take such steps as the Corporation may consider necessary to remedy such defective state and so long as he progresses to the satisfaction of the Corporation with the execution of such works and the taking of such steps the Corporation shall not take action under subsection (3) of this section in respect of such premises.

(3) At any time after the expiration of nine days after the service of a notice under subsection (1) of this section and subject to the provisions of subsection (2) of this section the Corporation may execute such works and take such steps as may be necessary to remedy the defective state of the premises to which such notice relates and subject to the provisions of subsection (4) of this section may recover the expenses reasonably incurred by them in so doing from the person upon whom the notice was served.

(4) (a) In proceedings to recover expenses under subsection (3) of this section it shall be a defence to prove that—

(i) the alleged defective state did not exist at the time of the service of the notice ; or

(ii) the need to abate the defective state was not so urgent as to justify the Corporation themselves executing such works and taking such steps without first complying with the provisions of section 93 and section 94 of the Act of 1936 ; or

(iii) the person upon whom the notice was served having duly served a counter-notice under subsection (2) of this section commenced within a reasonable time and progressed reasonably with the execution of such works and the taking of such steps as were necessary to remedy the defective state of the premises.

(b) A person against whom proceedings are taken under subsection (3) of this section shall upon information duly laid by him and on giving to the Corporation not less than three clear days' notice of his intention be entitled to have any person to whose act default or sufferance he alleges that the defective state of the premises was due brought before the court in the proceedings and if the original defendant proves that the defective state of the premises arose or continued by the act default or sufferance of that other person the court shall have power—

(i) to order that such expenses as aforesaid may be recovered from that other person ; or

(ii) to apportion the expenses between persons by whose acts defaults or sufferance the defective state of the premises arose or continued in such manner as the court may deem fair and reasonable.

(5) The Corporation may if they think fit exercise the powers of this section in relation to such defects in the premises as may be specified in the notice notwithstanding the fact that other defects may exist in such premises and in that case nothing contained in this section or done or executed thereunder shall prejudice or affect the powers of the Corporation under sections 93 to 98 and section 100 of the Act of 1936 in relation to any such other defect in such premises.

(6) The powers and functions of the Corporation under this section may be exercised by the medical officer or the sanitary inspector.

25.—(1) Where in accordance with building byelaws plans of a house are deposited with the Corporation the Corporation may reject the plans if they do not show that the house will be provided with a bathroom containing a fixed bath.

PART III
—cont.

(2) If the Corporation reject the plans under this section the notice given in pursuance of subsection (2) of section 64 of the Act of 1936 shall specify this section as that under the authority of which the plans have been so rejected.

Further
provisions as
to means of
escape from
fire in case
of certain
buildings.

26.—(1) Section 60 of the Act of 1936 shall have effect within the borough as if the following were substituted for subsection (4) of that section:—

“(4) This section applies to any building which exceeds one storey in height and in which the floor of any upper storey is more than twenty feet above the surface of the street or ground on any side of the building and which—

(a) is let in flats or tenement dwellings; or

(b) is used as an inn hotel boarding house hospital nursing home boarding school children’s home or similar institution or as a restaurant shop store office or warehouse.”

(2) Where expenditure is incurred by an owner in executing any works required to be executed in pursuance of a notice given under subsection (1) of section 60 of the Act of 1936 in relation to—

(a) any building let in flats or tenement dwellings; or

(b) premises referred to in paragraph (b) of subsection (4) of the said section 60 as amended by this section;

not being a building or premises in respect of which a notice could have been given under the said section before the coming into operation of this section the following provisions shall have effect:—

(i) In the case of expenditure incurred in relation to any such building as aforesaid let in flats or tenements such expenditure shall for the purpose of paragraph (a) of subsection (1) of section 2 of the Increase of Rent and Mortgage Interest (Restrictions) Act 1920 be deemed to be expenditure on the improvement of the dwelling-houses within such building and the owner of the building may apply to the county court for an order apportioning such expenditure on the several dwelling-houses comprised in such building and the court may on such application make such order as may be just and equitable in all the circumstances;

(ii) In the case of expenditure incurred in relation to any premises mentioned in paragraph (b) of this subsection if the owner thereof alleges that any tenant of the premises should meet or contribute to meeting such expenditure he may (without prejudice to any right of

appeal against the notice served on him in pursuance of section 60 of the Act of 1936) apply to the county court for an order making such variations of the terms of the tenancy of the premises as may be reasonable having regard to the expense incurred in executing the works and to other relevant circumstances and the court may on such application make such order as may be just and equitable in all the circumstances.

PART III
—cont.

Verminous articles

27.—(1) No dealer shall in the borough—

Prohibition
of sale of
verminous
articles.

(a) prepare for sale ;

(b) sell or offer or expose for sale ; or

(c) deposit for sale or preparation for sale ;

any household article if it is to his knowledge verminous or if by taking reasonable precautions he could have known it to be verminous.

(2) If any household article which is verminous is on any premises in the borough—

(a) being prepared or offered by a dealer for sale ; or

(b) exposed by a dealer for sale or deposited by a dealer for sale or preparation for sale ;

the medical officer or the sanitary inspector may cause the article to be disinfested or destroyed as the case may require and if necessary for that purpose to be removed from the premises and the Corporation may recover from the dealer the expenses incurred by the medical officer or the sanitary inspector in taking any action under this subsection.

(3) If any person contravenes the provisions of subsection (1) of this section he shall be liable to a penalty not exceeding twenty pounds.

(4) For the purposes of paragraph (a) of subsection (1) of section 287 of the Act of 1936 as applied by this Act the provisions of this section shall be provisions which it is the duty of the Corporation to enforce.

(5) In this section—

(a) the expression “dealer” means a person who trades or deals in any household article ;

(b) the expression “household article” means an article of furniture bedding or clothing or any similar article ;

(c) the expression “preparation for sale” shall not include disinfestation.

PART IV
NUISANCES

As to deposit
of rubbish.

28.—(1) If in the borough it appears to the Corporation that there is an accumulation of rubbish which is unsightly or otherwise detrimental to the amenities of the neighbourhood and ought to be removed the Corporation may serve a notice on the person by whose act or default such accumulation has been caused requiring him to remove it and if that person cannot be found the Corporation may themselves do forthwith what they consider necessary to remove the accumulation and to prevent recurrence thereof.

(2) The provisions of sections 94 to 96 of the Act of 1936 shall apply to a notice served under subsection (1) of this section as if—

(a) the said notice were an abatement notice ; and

(b) the accumulation of rubbish in respect of which the notice was served were a statutory nuisance.

(3) Notwithstanding anything in subsection (3) of section 276 of the Act of 1936 as applied by this Act that section shall apply to all rubbish removed by the Corporation under this section.

(4) This section shall not apply to rubbish accumulated on any land in the borough in the course of building operations or a work of demolition so long as the operations are or the work is proceeding and for a reasonable period thereafter.

(5) In this section “rubbish” means any rubble metal wood glass china earthenware tin cardboard paper flock or other refuse and any organic matter (whether waste or dead animal) but does not include any such materials or things which have been accumulated for and are reasonably required for the carrying on of any process.

Smokeless
areas.

29.—(1) The Corporation may by order confirmed by the Minister prohibit the emission of smoke from premises to which the order applies.

(2) An order under this section shall subject to the provisions of this section apply to all premises situated in such area or areas as may be specified in the order being either the whole of the borough or any part or parts thereof :

Provided that as respects any particular premises or premises of any class so situated any such order may provide—

(a) that they shall be excluded from the application of the order ; or

(b) that the application of the order to them shall be deferred until such date as may be so specified.

(3) The occupier of any premises from which smoke is emitted in contravention of the provisions of an order under this section shall be liable to a penalty not exceeding ten pounds and to a daily penalty not exceeding five pounds:

Provided that it shall be a defence in any proceedings under this subsection to prove that the smoke emitted—

(a) 'arose solely from a furnace stove or other appliance suitable for burning an authorised fuel and properly maintained and used ; and

(b) so arose either—

(i) by burning that authorised fuel therein ; or

(ii) by burning any other type of fuel therein unless it is proved by the prosecutor that the authorised fuel was available to the defendant at the time the smoke was emitted.

In this subsection the expression “authorised fuel” means coke anthracite or any other fuel specified in the order as being an authorised fuel for the time being approved by the Corporation.

(4) The Corporation may if they think fit contribute the whole or part of the expense necessarily incurred by any person in executing works or in providing altering or adapting any fixtures fittings or appliances for the purpose of complying with the provisions of an order under this section.

(5) An order under this section may contain provisions—

(a) for enabling the tenant of any premises incurring such expense as aforesaid and the owner of those premises to enter into and carry out an agreement making such variations in the terms of the tenancy of the premises as may be reasonable having regard to the expense incurred and to other relevant circumstances ;

(b) for enabling any such tenant who has been unable to make such an agreement to apply to the county court for an order making such variations of the terms of the tenancy as aforesaid and for enabling the court to make such an order.

(6) Before submitting an order to the Minister for confirmation under this section the Corporation shall publish in the London Gazette and in a local newspaper circulating in the borough a notice stating—

(a) that the order has been made and is about to be submitted to the Minister for confirmation ;

(b) the area within which the order applies and the general effect of the order ; and

PART IV
—cont.

- (c) that within twenty-eight days beginning with a date specified in the notice (not being earlier than the publication of the notice in the local newspaper) any person may object to the confirmation of the order by giving notice in writing to the Minister and sending a copy of the notice of his objection to the town clerk.

The Corporation shall also send a copy of the first-mentioned notice to the gas board.

(7) If no objection is duly made or if every objection so made is withdrawn the Minister may if he thinks fit confirm the order either with or without modification but in any other case he shall before confirming the order cause a local inquiry to be held and consider any objection not withdrawn and the report of the person holding the inquiry and may then confirm the order either with or without modification.

(8) If at any time after the passing of this Act any person owning or occupying premises in the borough by application to the town clerk specifying his name and address and the premises to which the application relates requests the Corporation to serve upon him a copy of any notice published in pursuance of subsection (6) of this section relating to an order affecting any premises so specified the Corporation shall—

- (a) register the name address and premises so specified in a register kept for the purpose ; and
- (b) serve upon him at the address entered in the register a copy of any such notice :

Provided that the accidental omission to serve a copy of a notice relating to any particular order on any person on whom it should have been served under paragraph (b) of this subsection shall not invalidate or prejudice the making or confirmation of the order.

(9) The Minister may for the purposes of this section designate to the Corporation any specified body of persons as being representative of the owners or occupiers of premises used for carrying on any trade or industry in the borough or of any class of such owners or occupiers and in the event of any such designation the Corporation shall before submitting an order under subsection (1) of this section to the Minister consult with such body.

(10) An order under this section may be varied or revoked by another order made by the Corporation and confirmed by the Minister in like manner and subject to the like provisions.

(11) An order under this section may also be varied by another order made by the Minister on the application of the electricity authority or the gas board in relation to any premises

intended to be used by the electricity authority as an electricity generating station or by the gas board as a gas works (as the case may be) for the purposes of their respective undertakings:

Provided that—

- (a) before making application to the Minister for an order under this subsection the electricity authority or the gas board (as the case may be) shall give notice to the Corporation of their intention to make the application stating the general effect of the order proposed; and
- (b) before making the order the Minister shall consider any representations which may be made by the Corporation and shall give the Corporation an opportunity of being heard thereon.

(12) As soon as may be after an order under this section has been confirmed by the Minister the Corporation shall—

- (a) publish in a local newspaper circulating in the borough a notice stating that the order has been confirmed and that a copy of the order may be inspected at all reasonable hours at a place in the borough specified in the notice; and
- (b) serve a like notice on every person who having given notice to the Minister of his objection to the order appeared at the local inquiry in support of his objection.

(13) An order under this section shall not come into operation before the expiration of six months from the date of the publication of notice of its confirmation under the last preceding subsection but shall come into operation on such date thereafter as may be specified in the order.

(14) Either—

- (a) a copy of any newspaper containing a notice published in pursuance of this section; or
- (b) a photostatic or other reproduction certified by the town clerk to be a true reproduction of a page or part of a page of any such newspaper bearing the date of its publication and containing any such notice;

shall be evidence of the publication of the notice and of the date of the publication.

(15) Nothing in any order under this section shall apply to smoke emitted from a railway locomotive.

(16) The Minister shall not confirm an order under this section applying as from any date to premises used for any of the following processes that is to say:—

- (a) the working of a mine;

PART IV
—cont.

- (b) the smelting of ores and minerals ;
- (c) the calcining puddling and rolling of iron and other metals ;
- (d) the conversion of pig iron into wrought iron or the reheating annealing hardening forging converting and carburising of iron and other metals ;

if he is satisfied on an objection duly made under subsection (6) of this section that the application of the order to those premises as from that date would obstruct or interfere with that process.

For protection
of Preston
Breweries
Limited.

30. The following provisions for the protection of Preston Breweries Limited (hereafter in this section referred to as "the company") shall apply and have effect in relation to the protected premises of the company:—

- (1) In this section—

"protected premises" means the premises of the company in Chester Road in the borough ;

"furnace" includes a copper :

- (2) If any furnace is approved in accordance with the following provisions of this section it shall in any proceedings under subsection (2) of section 29 (Smokeless areas) of this Act against the company in respect of the emission of smoke from the protected premises be a defence for the company to prove that the smoke emitted arose solely from the use of a furnace which is—

(a) for the time being approved under this section ;
and

(b) used in accordance with terms and conditions imposed thereunder (except any term or condition as to the type of fuel to be used if such fuel is not reasonably available) ; and

(c) otherwise properly maintained and used :

- (3) If the company submit to the Corporation plans and particulars of any furnace which has been installed or which the company intend to instal in the protected premises and furnish the Corporation with such other necessary information in regard thereto as they may require the Corporation shall within a period of six weeks (or such longer period as may be agreed upon between the parties) from the date upon which such plans and particulars are received by them or (if the Corporation require other necessary information as aforesaid) from the date upon which such other information is received by them—

(a) if they are satisfied that the furnace is so far as practicable capable of being operated continuously

without emitting smoke approve of the furnace subject to such terms and conditions (including terms and conditions as to the type of fuel to be used therein) as they may think fit ; or

(b) if they are not so satisfied disapprove of the furnace or approve of the furnace subject to such modifications and to such terms and conditions (including terms and conditions as to the type of fuel to be used therein) as they may think fit :

(4) Before disapproving of a furnace or requiring any modification or imposing any term or condition under this section the Corporation shall consult with the Minister of Fuel and Power :

(5) (a) If the Corporation disapprove of the furnace or if any dispute arises between the Corporation and the company as to any modification term or condition required or imposed by the Corporation under this section the matter shall be referred to arbitration ;

(b) In any such arbitration the arbitrator may—

(i) approve of the furnace ; or

(ii) disapprove of the furnace ; or

(iii) approve of the furnace subject to such modifications and to such terms and conditions (including terms and conditions as to the type of fuel to be used therein) as he may think fit :

(6) (a) At any time after a furnace has been approved of by the Corporation or the arbitrator under this section the Corporation may serve notice on the company withdrawing the approval of the furnace and stating their reasons for such withdrawal or intimating the modifications in the furnace or the further or different terms and conditions in regard thereto subject to which approval will be continued ;

(b) If any dispute arises between the Corporation and the company in consequence of a notice served under this subsection the matter shall be referred to and determined by arbitration :

(7) In any arbitration under this section the arbitrator shall have regard to cost and to local conditions and circumstances.

31.—(1) No person shall cause or permit to be discharged in the borough so as to be prejudicial to health or a nuisance—

Discharge of
steam and
waste gas.

(a) any steam or waste gas ejected from any stationary engine or the boilers or condensers thereof ; or

PART IV
—cont.

- (b) any condensing water above a temperature of one hundred and ten degrees Fahrenheit so ejected ; or
- (c) any spent or ejected steam arising or produced in the course of any trade or business.

(2) If any person contravenes the provisions of the foregoing subsection he shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

(3) Nothing in this section shall apply to steam gas or water discharged from a railway locomotive.

PART V

FOOD

Registration of
hawkers of
food and their
premises.

32.—(1) As from the appointed day the following provisions shall have effect in the borough :—

- (a) No person shall sell or offer or expose for sale any food from or upon a vehicle or from or upon a basket pail tray table or other portable receptacle or stand unless he is registered by the Corporation ;
- (b) No premises shall be used as storage accommodation for food intended for sale from or upon a vehicle or from or upon a basket pail tray table or other portable receptacle or stand unless the premises are registered by the Corporation :

Provided that nothing in this subsection shall apply—

- (i) to the sale or offer or exposure for sale of food by a person keeping open shop for the sale of food or by a person employed and in the course of his employment by such a person or to the use by a person so keeping open shop or by a person employed and in the course of his employment by such a person of any premises as storage accommodation for food intended for sale by him or his employer as the case may be ;
- (ii) to the sale or offer or exposure for sale of food by a dairyman registered under regulations for the time being in force under Part I of the Food and Drugs (Milk Dairies and Artificial Cream) Act 1950 or having effect by virtue of subsection (2) of section 36 of that Act as if they had been made under the said Part I or by a person employed and in the course of his employment by such a dairyman or to the use by any person as storage accommodation for food of a dairy so registered ;
- (iii) to the use by any person as storage accommodation for food of premises registered under section 14 of the Food and Drugs Act 1938 ;

- (iv) to the sale or offer or exposure for sale of food by any person on premises owned or occupied by him or his employer or to the use by any person of any premises owned or occupied by him or his employer as storage accommodation for food intended for sale by him or his employer on those or any other such premises ;
- (v) to the sale or offer or exposure for sale of food by any person or to the use of any premises as storage accommodation for food intended for sale if the profits of the sale are devoted to a religious or charitable purpose ;
- (vi) to the sale or offer or exposure for sale of food by any person at any market or fair for which such person or his employer has paid a toll stallage or rent or to the use of any premises in any such market or fair as storage accommodation for food intended for sale by a person at such market or fair.

(2) If any person contravenes the provisions of the foregoing subsection he shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

(3) An application for a person to be registered under this section shall be made by himself and an application for premises to be so registered shall be made by the occupier or intending occupier thereof.

(4) If it appears to the Corporation—

- (a) that the public health is or is likely to be endangered by any act or default of a person who has applied to be or is registered under this section being an act or default in relation to the quality storage or distribution of food ; or
- (b) that any premises in respect of which an application has been made for registration under this section or which are registered under this section do not satisfy the requirements of subsection (1) of section 13 of the Food and Drugs Act 1938 or are otherwise unsuitable for use as storage accommodation for food intended for sale as aforesaid ;

the Corporation shall serve on that person or on the person applying for the registration of the premises or in the case of premises which are registered the occupier of the premises a notice—

- (i) stating the place and time (not being less than seven days after the date of the service of the notice) at which it is proposed that a committee of the council shall take the matter into consideration ; and

PART V
—cont.

(ii) informing him that he may attend before the said committee with any witnesses whom he desires to call at the place and time mentioned to show cause why the Corporation should not for reasons specified in the notice refuse to register him or the premises or revoke his or their registration as the case may be.

(5) If a person on whom a notice is served under the last preceding subsection fails to show cause to the satisfaction of the said committee the Corporation may refuse to register him or the premises or revoke his or their registration (as the case may be) and shall forthwith give notice to him of their decision in the matter and shall if so required by him within fourteen days of their decision give to him within forty-eight hours a statement of the grounds on which it was based.

(6) Any person aggrieved by a decision of the Corporation under the last preceding subsection may appeal to a court of summary jurisdiction.

(7) For the purposes of paragraph (a) of subsection (1) of section 287 of the Act of 1936 as applied by this Act the provisions of this section shall be provisions which it is the duty of the Corporation to enforce.

(8) Any person or premises registered under section 107 (Registration of hawkers of food and premises) of the Act of 1947 shall be deemed to have been registered under this section.

(9) In this section the following expressions have the meanings hereby respectively assigned to them:—

“ food ” does not include any substance in containers of such materials and so closed as to exclude all risk of contamination ;

“ market or fair ” means a market house market place or place for fairs from time to time under the management of the Corporation.

Notification of
premises for
sale etc. of
food.

33.—(1) As from the appointed day any person intending to use for any of the purposes set out in the next succeeding subsection any premises in the borough which were not so used immediately before that day shall give not less than fourteen days' notice to the Corporation of his intention so to do.

(2) The purposes to which this section applies are—

- (a) the sale or offer or exposure for sale ; or
- (b) the storage for the purposes of sale ; or
- (c) the preparation for sale ;

of any food (other than milk) intended for human consumption.

(3) Any person who shall use any premises in the borough for any of the purposes mentioned in subsection (2) of this section shall unless—

(a) those premises were used for such purpose immediately before the appointed day ; or

(b) he has given notice to the Corporation in accordance with subsection (1) of this section ;

be liable to a penalty not exceeding ten pounds.

(4) Nothing in this section shall apply to—

(a) the sale or offer or exposure for sale or the storage for the purposes of sale in any premises used as a theatre music hall or cinematograph theatre of ice-cream or sugar confectionery ;

(b) any railway station or to any premises within the curtilage of such station.

(5) In this section the expression “ food ” does not include—

(a) any article used as drink for human consumption sold on premises in respect of which there is an excise licence granted in accordance with the provisions of section 49 and the First Schedule to the Finance (1909-10) Act 1910 ; or

(b) any substance in containers of such materials and so closed as to exclude all risk of contamination.

34. As from the appointed day no premises in the borough shall be used for the sale or the manufacture for the purposes of sale or the storage of any frozen liquid sold or intended for sale as a sweet or confection unless they are registered in accordance with the provisions of section 14 of the Food and Drugs Act 1938 and the provisions of the said section shall apply to such premises in all respects as if they were premises used for the sale or the manufacture for the purposes of sale of ice-cream or the storage of ice-cream intended for sale.

Registration of premises used in connection with sale or manufacture or storage of certain frozen liquids.

35.—(1) The Corporation may make byelaws—

(a) requiring the sterilisation in such manner as may be prescribed by the byelaws of animal feeding meat exposed or offered for sale for consumption by dogs cats or other animals ;

Byelaws as to meat for feeding animals.

(b) prohibiting the sale or offer or exposure for sale of animal feeding meat for consumption by dogs cats or other animals unless such meat has been so sterilised ;

(c) empowering an authorised officer to examine any animal feeding meat which is offered or exposed for sale for consumption by dogs cats or other animals and to

PART V
—cont.

seize and destroy or cause to be destroyed such animal feeding meat if it has not been so sterilised as aforesaid :

Provided that nothing in any byelaws made under the provisions of this section shall extend or apply to require the sterilisation of animal feeding meat which is supplied to a zoological garden or to a menagerie for consumption by carnivorous animals and which has been examined and passed as fit for animal food by an authorised officer.

(2) In this section the following expressions have the meanings hereby respectively assigned to them :—

“ authorised officer ” means any officer of the Corporation who is by virtue of the Food and Drugs Act 1938 an authorised officer for the purpose of the examination and seizure of meat under the provisions of that Act ; and

“ animal feeding meat ” means any flesh of cattle horses asses mules swine sheep or goats which is not sold or intended for sale for human consumption and includes any such flesh whether cooked or uncooked and whether alone or accompanied by or mixed with any other substance ; and

“ flesh ” includes any part of an animal.

PART VI

PARKS CEMETERIES AND OTHER MUNICIPAL PROPERTY

Parking places
in parks etc.

36. For the purpose of providing a parking place under section 68 of the Public Health Act 1925 the Corporation may with the consent of the Minister utilise any part of a park pleasure ground or open space provided by them or under their management and control :

Provided that the part of any park pleasure ground or open space utilised under this section shall not exceed one-eighth of the total area thereof or one acre whichever is the less.

Boating pools.

37.—(1) The Corporation may in any park pleasure ground or open space provided by them or under their management and control provide a boating pool.

(2) The Corporation may provide such buildings and execute such works as may be necessary or expedient in connection with the provision of any boating pool under this section and references in the following provisions of this section to a boating

pool so provided shall include references to any buildings provided or works executed under this subsection and to anything with which any such building or boating pool is equipped by virtue of section 271 of the Act of 1936 as applied by this Act.

(3) The Corporation may either—

(a) themselves manage any boating pool provided under this section making such reasonable charges for the use thereof or admission thereto as they think fit; or

(b) let it or any part thereof for such consideration and on such terms and conditions as they think fit.

(4) The powers of the Corporation under subsection (2) of section 44 of the Public Health Acts Amendment Act 1890 with respect to a piece of water in a park or pleasure ground provided by them shall be extended so as to be exercisable with respect to any boating pool provided under this section.

38. No power conferred upon the Corporation by the preceding sections of this Part of this Act shall be exercised in such a manner—

(a) as to be at variance with any trust subject to which any land or building is held managed or controlled by the Corporation without an order of the High Court or of the Charity Commissioners or of the Minister of Education or (where the trust instrument reserves to the donor or any other person the power to vary the trust) without the consent of the donor or that other person; or

(b) as to contravene any covenant or condition subject to which a gift or lease of any land or building has been accepted by or granted to the Corporation without the consent of the donor grantor lessor or other person entitled in law to the benefit of the covenant or condition.

39.—(1) The Corporation may agree with any person in consideration of the payment of a capital sum by him to maintain for a period fixed by the agreement a grave or tombstone in a cemetery provided by the Corporation and the following provisions shall apply in relation to any such agreement:—

Agreements
to maintain
graves and
tombstones.

(a) The said sum shall subject to the next following paragraph and any other enactment authorising its application in some other manner be invested in statutory securities;

(b) If and in so far as the cost of maintaining the grave or tombstone in accordance with the agreement exceeds in any year the interest received on the said sum the cost shall be defrayed out of the capital of the said sum;

PART VI
—cont.

(c) At the expiration of the period fixed by the agreement for the maintenance of the grave or tombstone the Corporation may apply the capital of the said sum or so much thereof as has not been expended under the last foregoing paragraph in any manner in which capital money may properly be applied by them under any enactment ;

(d) The amount of the capital of the said sum and the interest thereon shall be shown separately in the accounts of the Corporation relating to the cemetery.

(2) In this section the following expressions have the meanings hereby respectively assigned to them :—

“ cemetery ” includes a burial ground and a crematorium ;

“ grave ” includes a grave space niche or urn ;

“ tombstone ” includes a monument or other memorial of a deceased person.

Extension of
power to
maintain burial
grounds.

40.—(1) The powers of the Corporation in relation to a burial ground provided by them or a closed or disused burial ground maintainable by them shall include power to put and keep in order any grave or tombstone therein subject to the following provisions :—

(a) Before exercising the powers of this section the Corporation shall give notice of their intention so to do—

(i) by publishing the notice once in each of two successive weeks in a local newspaper circulating in the borough with an interval between each publication of not less than six clear days ; and

(ii) by displaying the notice in a conspicuous position in the burial ground ;

(b) Any such notice shall—

(i) contain a description of the works intended to be executed ; and

(ii) specify the date on which it is intended that those works will commence which shall not be earlier than the fourteenth day after the last publication of the notice in a newspaper as aforesaid or the twenty-first day after the notice is first displayed in the burial ground as aforesaid ; and

(iii) state the effect of paragraph (c) of this subsection ;

(c) If notice of objection to the execution of any such works and of the ground thereof is given to the Corporation before the date so specified and is not withdrawn before

the expiration of fourteen days from that date the works to which the objection relates shall not be executed without the consent of the Minister.

PART VI
—cont.

(2) In this section the following expressions have the meanings hereby respectively assigned to them:—

“burial ground” includes a cemetery;

“grave” includes a grave space;

“tombstone” includes a monument or other memorial of a deceased person.

41.—(1) Where part of a burial ground belonging to the Corporation is disused (other parts being still used for interments) the Corporation subject to the provisions of section 11 of the Open Spaces Act 1906 may manage the disused part remove or change the position of any tombstone monument or kerb therein and lay out and maintain the same as a garden but the public shall not have access thereto except to such extent as the Corporation may permit.

Powers as to
disused part of
burial ground.

(2) Where part of a burial ground in the borough not belonging to the Corporation is disused the owner thereof may convey such part to or grant any term of years or other limited interest therein to or make any agreement with the Corporation for the purposes of this section and the Corporation may accept such conveyance thereof or grant of interest therein and enter into such agreement.

(3) Subject to the terms upon which the Corporation have acquired part of a burial ground or an interest therein and to the terms of any agreement made under this section the Corporation may exercise in such part of the burial ground the powers referred to in subsection (1) of this section.

(4) Where the Corporation in the exercise of their powers under this section remove or change the position of any tombstone monument or kerb relating to the remains of any deceased person the Corporation shall cause to be made a record of such tombstones monuments or kerbs and of their situation when re-erected showing the particulars respecting each tombstone monument and kerb as a separate entry and such record shall be deposited at the General Register Office Somerset House London with the miscellaneous records in the custody of the Registrar-General.

(5) In this section the expressions “owner” and “burial ground” have respectively the same meanings as in the Open Spaces Act 1906 and “disused” shall be construed according to the meaning of the expression “disused burial ground” in that Act.

PART VI
—cont.Removal of
human
remains.

42.—(1) In the exercise of the powers of the last preceding section the remains of any deceased person interred in the part of the burial ground in which the powers are exercised shall not be disturbed unless the Corporation find it necessary and in that case the Corporation shall remove or cause to be removed the remains of any deceased person which have to be disturbed:

Provided that the Secretary of State on the application of the Corporation and on being satisfied that such removal is not necessary or desirable may dispense with all or any of the requirements of this section on such conditions (if any) as he thinks fit.

(2) Before proceeding to remove any such remains the Corporation shall publish a notice once in each of three successive weeks in a local newspaper circulating in the borough to the effect that it is intended to remove such remains and such notice shall have embodied in it the general effect of subsections (3) (4) (5) (6) and (7) of this section.

(3) At any time within two months after the first publication of such notice any person who is an heir executor administrator or relative of any deceased person in respect of whose remains the Corporation have published a notice under subsection (2) of this section may give notice in writing to the Corporation of his intention to undertake the removal of such remains and thereupon he shall be at liberty (and in the case of remains interred in a Church of England burial ground without any faculty for the purpose but subject as hereinafter mentioned to any regulations made by the bishop of the diocese of Blackburn) to cause such remains to be removed to and re-interred in any burial ground or cemetery in which burials may legally take place but in the case of a churchyard only with the previous consent of the incumbent of the parish.

(4) If any person giving such notice as aforesaid shall fail to satisfy the Corporation that he is such heir executor administrator or relative as he claims to be the question shall be determined on the application of either party in a summary manner by the registrar of the consistory court of the diocese of Blackburn in the case of the removal of remains from a Church of England burial ground or by a county court in all other cases and the said registrar or county court (as the case may be) shall have power to make an order specifying who shall remove the remains.

(5) The expense of such removal and re-interment (not exceeding in respect of remains removed from any one grave the sum of twenty-five pounds) shall be defrayed by the Corporation

such sum to be apportioned if necessary equally according to the number of deceased persons whose remains have been removed from the grave.

PART VI
—cont.

(6) If—

(a) within the said period of two months no notice as aforesaid shall have been given to the Corporation in respect of the remains in any grave; or

(b) within two months after such notice as aforesaid has been given no application has been made under subsection (4) of this section and the person giving the notice under that subsection fails to remove the remains;

(c) within two months after any order is made under subsection (4) of this section the person specified in the order fails to remove the remains;

the Corporation may remove the remains of the deceased person and cause them to be interred in a burial ground or cemetery in which burials may legally take place as the Corporation think suitable for the purpose subject in the case of remains removed from a Church of England burial ground to the previous consent of the said bishop and in the case of re-interment in a churchyard only with the previous consent of the incumbent of the parish.

(7) All memorial stones containing inscriptions relating to the remains of any deceased person removed under this section shall at the expense of the Corporation be removed and replaced at the place of re-interment of such remains or at such place as the said bishop or the county court (as the case may be) may direct (subject in the case of a churchyard to the approval of the incumbent of the parish in which such churchyard is situate) on the application (if any) of such heir executor administrator or relative as aforesaid or failing such application on the application of the Corporation and the Corporation shall cause to be made a record of such memorial stones and their situation when replaced showing the particulars respecting each memorial stone as a separate entry and such record shall be deposited at the General Register Office Somerset House London with the miscellaneous records in the custody of the Registrar-General.

(8) Any jurisdiction or power conferred on a county court by this section may be exercised by the registrar of the court.

(9) The removal of the remains of any deceased person under this section shall be carried out under the supervision and to the satisfaction of the medical officer.

PART VII

SALE OF WOOD FUEL

Application of
Weights and
Measures Act
1889.

43. The provisions of sections 20 to 22 and 24 to 27 and 29 of the Weights and Measures Act 1889 as amended by section 121 (Amendment of section 27 of Weights and Measures Act 1889 in its application to the borough) of the Act of 1947 (which provisions relate to the sale of coal) shall also apply to the sale of wood fuel within the borough in quantities not less than fourteen pounds.

Byelaws
relating to
wood fuel.

44. The Corporation may make byelaws—

- (1) regulating for the purposes of this Part of this Act and the Weights and Measures Act 1889 the sale of wood fuel in quantities of fourteen pounds or over but not exceeding two hundredweights;
- (2) requiring either generally or in specified classes of cases a weighing instrument of a form approved by the Corporation to be carried with any vehicle in which wood fuel is carried for sale or delivery to a purchaser; and
- (3) prescribing the distance beyond which wood fuel is not to be required to be carried for the purpose of being weighed or re-weighed in pursuance of section 27 of the Weights and Measures Act 1889 as applied by this Act.

Penalty for
fraud.

45. If any person wilfully makes any false statement as to the weight of any wood fuel which is being sold delivered or offered or exposed for sale or as to the tare weight of a vehicle used for the delivery of wood fuel or wilfully increases the weight of any such wood fuel by damping the same or wilfully does any other act by which the seller or the purchaser or prospective purchaser of wood fuel is or may be defrauded he shall be liable for every such offence on the first occasion to a penalty not exceeding five pounds and on the second or any subsequent occasion to a penalty not exceeding ten pounds.

Notice of this
Part of Act.

46.—(1) The foregoing provisions of this Part of this Act shall come into operation on but not until the first day of January nineteen hundred and fifty-three.

(2) (a) The Corporation shall forthwith after the passing of this Act cause public notice to be given of the effect of this Part of this Act by advertisement in two or more newspapers circulating in the borough and otherwise in such manner as the Corporation think sufficient.

(b) No evidence shall be required in any proceedings that the provisions of this section have been complied with.

PART VIII

ESTABLISHMENTS FOR MASSAGE OR SPECIAL TREATMENT

47. In this Part of this Act the expression " establishment for massage or special treatment " means any premises used or represented as being or intended to be used for the reception or treatment of persons requiring—

Definition of establishment for massage or special treatment.

- (a) massage or chiropody ; or
- (b) electric treatment or radiant heat light electric vapour or other baths for therapeutic treatment ; or
- (c) other similar treatment.

48. As from the appointed day no person shall carry on an establishment for massage or special treatment within the borough without a licence from the Corporation authorising him so to do.

Establishments for massage or special treatment to be licensed.

49.—(1) A person requiring a licence or the renewal of a licence under this Part of this Act shall make application in writing to the Corporation and shall in the application state—

Applications for licences.

- (a) his full name ;
- (b) his age and nationality ;
- (c) his technical qualifications ;
- (d) his private address or if the application be made by or on behalf of a company society association or other body the registered or principal office (if any) of such body and so far as may reasonably be required the names and private addresses of the directors or other persons directly or indirectly responsible for the management of such body ;
- (e) the name under which and the address at which the establishment is carried on or proposed to be carried on ;
- (f) the nature of the establishment and of the business carried on or proposed to be carried on thereat ;
- (g) whether and if so to what extent he is or has been interested in any other establishment for massage or special treatment ; and
- (h) such further information (if any) as the Corporation may reasonably require with respect to him or the establishment carried on or proposed to be carried on by him.

(2) The person making an application under this section shall when making the same pay to the Corporation a fee of five shillings in respect of an application for the grant or renewal

PART VIII
—cont.

of a licence and the fees paid on any such application may be retained by the Corporation whether such licence is or is not granted or renewed.

(3) Subject to the foregoing provisions of this section the Corporation may make such regulations as they think fit as to the manner in which and the dates at which applications for a licence or the renewal of a licence under this Part of this Act shall be made.

Grant of
licences.

50.—(1) The Corporation shall as soon as reasonably practicable after the receipt of an application under this Part of this Act grant or renew a licence to the applicant to carry on an establishment for massage or special treatment of the description and in the name and at the address specified in the application and may attach such conditions thereto as they may consider reasonably necessary for securing the due notification to them of any change in the name or private address of the licensee or in the treatment afforded or in the nature of the business carried on at the establishment and generally for securing the proper conduct of the establishment:

Provided that the Corporation may refuse to grant or renew a licence or may revoke a licence granted—

- (a) to any person under the age of twenty-one years ; or
- (b) to any person who may be unsuitable to hold such licence ; or
- (c) in respect of any premises which are unsuitable for the purposes of an establishment for massage or special treatment or in which the accommodation or provision for such treatment is not reasonably adequate or suitable ; or
- (d) in respect of any establishment which has been or is being improperly conducted ; or
- (e) in respect of any establishment in which massage or special treatment is or may be administered by any person who does not possess such technical qualifications as may be reasonably necessary ; or
- (f) in respect of any establishment which is being carried on in contravention of the provisions of this Part of this Act or any byelaw made thereunder.

(2) If the Corporation refuse to grant or renew a licence or if they revoke a licence under this Part of this Act they shall if required by the applicant or holder (as the case may be) send or deliver to him within seven days of the receipt of such requirement particulars in writing of the ground or grounds for such refusal or revocation.

(3) Where an application is made for the renewal of a licence and objections have been made to such renewal or when it is proposed to revoke a licence notice to that effect shall at least seven days before the question of renewal or revocation is considered by a committee of the council be given to the applicant or holder of the licence and if within three days after the receipt of such notice the applicant or holder requires to be heard the application shall not be refused or the licence revoked unless the Corporation has afforded him an opportunity of being heard before a committee of the council against the refusal or revocation.

Any notice served under this subsection shall state the objections to renewal or the grounds on which revocation is proposed and shall notify the aforesaid right of being heard and also the effect of subsection (2) of this section and the right of appeal conferred by subsection (4) of this section and the time within which such appeal may be brought.

(4) Any person aggrieved by a refusal of the Corporation to grant or renew a licence or a revocation of a licence under this Part of this Act or by any conditions attached to such a licence may appeal to a court of summary jurisdiction.

(5) Every licence granted or renewed as aforesaid shall (unless revoked) be valid until the date of the next annual meeting fixed for the purpose of considering applications under this Part of this Act and no longer.

51.—(1) The Corporation may make byelaws—

Byelaws as to
establishments
for massage
or special
treatment.

- (a) prescribing the keeping by every person holding a licence under this Part of this Act of books cards or forms showing the business conducted by him so far as it relates to his establishment for massage or special treatment ;
- (b) prescribing the entries to be made in connection with such business in such books or cards or forms ;
- (c) for preventing fraud and immorality in the conduct of establishments so licensed ; and
- (d) generally for regulating any premises in the borough used for the purposes of or in connection with any such establishment.

(2) Every person holding a licence under this Part of this Act shall keep exhibited in a suitable place (to be approved by the Corporation) in the premises to which the licence relates a copy of the byelaws made under this section.

52.—(1) Any officer of or other person duly authorised by the Corporation in that behalf may—

Powers of entry
and inspection.

- (a) enter the premises specified in any licence or application under this Part of this Act or any premises which are

PART VIII
—cont.

used or which there is reasonable cause to believe are used for the purposes of or in connection with an establishment for massage or special treatment; and

- (b) inspect such premises and the books cards or forms kept in connection with the establishment carried on at those premises.

(2) The provisions of subsections (2) to (5) of section 287 of the Act of 1936 shall have effect as if they were re-enacted in this section and in terms made applicable thereto.

Penalties for
offences in
respect of
establishments
for massage
etc.

53.—(1) Every person who carries on an establishment for massage or special treatment without a licence under this Part of this Act or otherwise than in accordance with the terms and conditions of such licence or obtains a licence or the renewal of a licence by wilful misrepresentation or by wilfully omitting to give such particulars as are required by this Part of this Act to be given shall be liable to a penalty not exceeding fifty pounds and to a daily penalty not exceeding twenty pounds and in respect of a second or subsequent offence the court may in lieu of or in addition to inflicting a fine impose any period of imprisonment not exceeding three months.

(2) Every person who—

- (a) contravenes the provisions of any byelaw made under this Part of this Act; or
- (b) contravenes the provisions of subsection (2) of section 51 (Byelaws as to establishments for massage or special treatment) of this Act; or
- (c) issues publishes or displays or causes to be issued published or displayed any advertisement relating to an establishment for massage or special treatment which is not licensed in accordance with the provisions of this Part of this Act after the expiration of a period of seven days from the receipt by such person of notice from the Corporation that the licence relating to such establishment has expired or has been refused or revoked under the provisions of this Part of this Act;

shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(3) In respect of any conviction for an offence under this Part of this Act the court may (in lieu of or in addition to imposing a penalty) make an order revoking a licence granted under this Part of this Act.

Saving for
establishments
carried on
by medical
practitioners.

54. The provisions of this Part of this Act shall not apply to an establishment for massage or special treatment carried on by a registered medical practitioner.

55.—(1) Subject as hereinafter provided the provisions of this Part of this Act prohibiting a person from carrying on an establishment for massage or special treatment without a licence from the Corporation authorising him so to do shall not apply to a registered member of the Chartered Society of Physiotherapy or a registered member of the Society of Chiropodists Limited (By Guarantee) or a registered member of the Joint Council of Chiropodists of Great Britain and Ireland carrying on or proposing to carry on any such establishment with respect to which there has been lodged with the Corporation a certificate in a form to be approved by the Corporation and signed by two registered medical practitioners not being in partnership with each other and not having any financial or other interest in such establishment to the effect that the person carrying on or proposing to carry on such establishment is a suitable person to carry on the same at the premises used or to be used therefor:

Provided that any such certificate shall not be valid—

- (a) with respect to any person or premises other than the person or premises specified therein; or
- (b) for a period extending beyond the expiration of one month after the date of the annual meeting fixed for the purpose of considering applications under this Part of this Act.

(2) Any registered member of either of the said societies or of the said joint council carrying on an establishment for massage or special treatment with respect to which a valid certificate is deposited with the Corporation under subsection (1) of this section is in this section referred to as a “registered member”.

(3) During the validity of any such certificate the provisions of this Part of this Act (other than section 48 (Establishments for massage or special treatment to be licensed) section 49 (Applications for licences) and section 50 (Grant of licences)) shall apply to a registered member and to the establishment carried on by him—

- (a) as if he held a licence under this Part of this Act; and
- (b) as if the premises with respect to which the certificate has been given were the premises specified in the licence;

Provided that no person other than the medical officer or a registered medical practitioner shall be entitled for the purposes of this Part of this Act to inspect the premises at which the establishment is carried on or the books cards or forms kept in connection with such establishment.

(4) The provisions of this section shall apply to a registered member and to the establishment carried on by him so long only as he complies with the provisions of the charter granted

PART VIII
—cont.

to the Chartered Society of Physiotherapy and with the byelaws made thereunder or with the memorandum and articles of association of the said Society of Chiropodists and with the byelaws made thereunder or the rules and regulations of the said joint council as the case may be.

Saving for
certain
premises.

56. Notwithstanding anything in this Part of this Act the provisions thereof shall not apply to—

- (a) any hospital provided by the Minister of Health ; or
- (b) any nursing home which is for the time being registered under the Act of 1936 or exempted from registration under that Act by a certificate granted by either the Corporation or the said Minister and at which the persons administering massage or special treatment have such technical qualifications as may be reasonably necessary ; or
- ~~(c) any premises used for the reception or treatment of persons for any purpose to which the provisions of this Part of this Act apply but not so used for the purpose of gain or reward ; or~~
- (d) any premises being an establishment for massage or special treatment merely by reason of face or scalp massage being administered in those premises.

PART IX

HEATING UNDERTAKING

Supply of heat.

57.—(1) The Corporation may supply heat to such premises as they may think fit in the borough upon and subject to the terms and conditions provided by this Part of this Act and such other terms and conditions as may be agreed between the Corporation and the owners or occupiers of those premises:

Provided that in the exercise of the powers of this section the Corporation shall not show undue preference to any person and shall not exercise any undue discrimination against any person.

(2) Before the Corporation enter into an agreement with the occupier of any premises for the supply of heat to such premises they shall give notice of their intention so to do to the owner of the premises and in the event of the supply of heat to such premises being discontinued notice of such discontinuance shall be given by the Corporation to the owner of such premises.

Works for
provision
of heat

58.—(1) Subject to the provisions of this Part of this Act the Corporation may on lands in the borough belonging or leased to them erect lay down maintain work and use stations boiler-houses mains pipes and other works for providing storing

transmitting distributing and supplying heat and for producing any material product matter or thing arising or used in the process of such provision of heat (including the generation of electricity) together with such buildings boilers engines pumps machinery sidings electric lines matters and things of whatever description as may be required by the Corporation to enable them to provide store transmit distribute and supply heat and the Corporation may accordingly on those lands provide store transmit distribute and supply heat and may produce such materials products matters and things :

PART IX
—cont.

Provided that—

(a) nothing in this section shall be taken to dispense with the consent of any government department to any use of any lands of the Corporation in any case in which such consent would have been required if this section had not been enacted ;

(b) any electrical works or apparatus erected laid down maintained worked and used in pursuance of this section shall be so constructed maintained worked and used as to prevent interference with any telegraphic line belonging to or used by the Postmaster-General or with telegraphic communication by means of any such line.

(2) Any electricity generated by the Corporation as aforesaid may be sold—

(a) to the electricity authority ; or

(b) with the approval of the electricity authority to the electricity board ;

and any electricity so generated and not so sold as aforesaid may only be used for or in connection with the supply of heat under the powers of this Part of this Act at the works at which it is generated or (with the consent of the electricity authority and the electricity board) elsewhere.

(3) The electricity authority shall take all the electricity generated by the Corporation as aforesaid which is not—

(a) required for or in connection with the supply of heat ; or

(b) supplied to the electricity board with the approval of the electricity authority ;

upon such terms and conditions as may be agreed between the Corporation and the electricity authority or in default of agreement determined by arbitration on the basis of a supply by a willing seller to a willing buyer.

(4) Any matter to be determined by arbitration under the last preceding subsection shall be referred to and determined by an arbitrator to be agreed upon between the Corporation and the

PART IX
—cont.

electricity authority or in default of agreement to be appointed by the President of the Institution of Electrical Engineers.

As to
construction of
station for
providing heat.

59.—(1) (a) If the council shall resolve to construct extend modify or enlarge a station for providing heat under the powers of this Part of this Act they shall forthwith give to the Minister of Fuel and Power and to the electricity authority and to the gas board notice of such resolution together with such information with regard to such station as the electricity authority or the gas board (as the case may be) may within six weeks of the service of such notice reasonably require including information as to the nature position and capacity of the proposed station (but not details of design) the proposed method of producing heat thereat the area proposed to be supplied therefrom and an estimate of the quantity or quantities of heat required by the Corporation and of the times and form at and in which such quantity or quantities will be required.

(b) Any dispute between the Corporation on the one hand and the electricity authority and the gas board or either of them on the other hand as to whether any information is reasonably required by the electricity authority and the gas board or either of them under this subsection shall be referred to and determined by the Minister of Fuel and Power.

(2) Within three months after the service of the said notice or the receipt of such information (whichever is the later) the electricity authority and the gas board or either of them may serve upon the Corporation a counter-notice offering a supply of heat to them upon such terms and conditions as may be specified in the counter-notice or as may be agreed between the Corporation and the electricity authority or the gas board as the case may be.

(3) If within three months after the receipt of such counter-notice or such longer period as may be agreed between the Corporation and the electricity authority or the gas board (as the case may be) the terms and conditions upon which a supply of heat is to be given to the Corporation by the electricity authority or the gas board (as the case may be) for the purposes of the heating undertaking are not agreed between them the Corporation shall submit to the Minister for determination the question whether a supply of heat shall be afforded to the Corporation by the electricity authority or the gas board and (if he determines that a supply of heat is to be afforded by the electricity authority or the gas board) the terms and conditions upon which such a supply is to be afforded.

(4) If the Minister determines that a supply of heat shall be afforded to the Corporation by the electricity authority or the gas board the electricity authority or the gas board (as the case

may be) shall afford such a supply in accordance with the terms and conditions approved by the Minister :

PART IX
—cont.

Provided that if the Minister makes a substantial alteration in the terms or conditions on which the electricity authority or the gas board offered a supply of heat to the Corporation then if within twenty-eight days after the receipt of the determination of the Minister the electricity authority or the gas board (as the case may be) give notice in writing to the Minister and the Corporation that the said terms or conditions are not acceptable they shall not be required to afford a supply of heat to the Corporation and the Corporation shall be entitled to proceed with their proposals as if this section had not been enacted unless within twenty-eight days of such last-mentioned notice the Corporation serve on the electricity authority or the gas board (as the case may be) a notice requiring a supply in which case the electricity authority or the gas board (as the case may be) shall afford a supply on the terms and conditions specified in the counter-notice referred to in subsection (2) of this section.

60.—(1) The Corporation may enter into and carry into effect agreements with any persons entitled to give a supply of heat for the furnishing to the Corporation by such persons of a supply of heat for the purposes of this Part of this Act and—

Power to buy
heat in bulk.

(a) any such person may enter into any such agreement accordingly ; and

(b) any such agreement may provide for the provision by the Corporation or for the joint user by them and any other party to the agreement of any works plant materials or things required for the purposes of the agreement.

(2) The Corporation may for the said purposes also enter into and carry into effect agreements for the taking and use of waste heat hot water or steam from any generating station or gasworks and any authority able to supply heat hot water or steam may enter into such an agreement.

61.—(1) The Corporation may be authorised by the Minister to purchase compulsorily for the purposes of the heating undertaking land in the borough.

Purchase of
land for
heating
undertaking.

(2) The Acquisition of Land (Authorisation Procedure) Act 1946 (except section 2 thereof) shall apply as if this section were an enactment contained in a public general Act and in force immediately before the commencement of that Act.

(3) In this section the expression “ land ” includes easements and rights in respect of land and the Corporation may be authorised under this section to acquire compulsorily such easements or rights only as they may require without purchasing

PART IX
—cont.

any other interest in the land. In relation to the compulsory acquisition of any such easement or right the Acquisition of Land (Authorisation Procedure) Act 1946 (except section 2 thereof) and the enactments incorporated therewith shall have effect as if references (whatever the terms used) to the land comprised in the compulsory purchase order were construed where the context so requires as references to the land in respect whereof the easement or right is acquired and references to the obtaining or taking possession of the land so comprised were construed as references to the exercise of the easement or right.

(4) Where the Corporation have acquired an easement or right only in any land under this section—

- (a) they shall not be required or (except by agreement) entitled to fence off or sever that land from the adjoining land ;
- (b) the owner or occupier of the land for the time being shall subject to the easement or right have the same right to use and cultivate the land as if this Act had not been passed.

(5) If in his particulars of claim the owner of any land in respect of which notice to treat for an easement or right is given under this section requires the Corporation to acquire the land the Corporation shall not be entitled under this section to acquire the easement or right unless the tribunal by whom the compensation is to be assessed determines that the easement or right can be granted without material detriment to the land or in the case of a park or garden belonging to a house without seriously affecting the amenity or convenience of the house:

Provided that nothing in this subsection shall apply to land forming part of a street.

(6) A notice to treat given under this section shall be endorsed with notice of the effect of subsection (5) of this section.

Power to lay
mains etc. and
break open
streets.

62.—(1) The following provisions of the Third Schedule to the Water Act 1945 are hereby incorporated with this Part of this Act namely:—

- Part V (Power to lay mains &c.);
- Section 22 (Power to break open streets);
- Section 25 (Protection for railway companies navigation authorities tramway undertakers &c.);
- Section 27 (Remedies where undertakers fail to comply with foregoing requirements);
- Section 28 (Application of Part VI to verges and streets and highways not maintainable at the public expense); and
- Section 93 (Protection for works of navigation authorities and for catchment boards and railways).

(2) For the purpose of the construction of the provisions incorporated by this section the following expressions have the meanings hereby respectively assigned to them:—

“ the undertakers ” means the Corporation ;

“ supplying water ” means supplying heat and “ supply of water ” shall be construed accordingly ;

“ service pipe ” means a pipe for supplying heat from a main to any premises ; and

“ the limits of supply ” means the borough.

(3) Nothing in the provisions incorporated by this section shall authorise the Corporation—

(a) to lay down a main outside the borough except for the purpose of—

(i) giving or facilitating a supply of heat within the borough ; or

(ii) taking a supply of heat from any works or premises outside the borough ;

(b) to supply heat to any premises outside the borough.

63.—(1) Before the Corporation—

(a) apply to the appropriate sanctioning authority for consent to the borrowing of money for the purpose of constructing laying down or executing any works for providing storing transmitting or distributing heat under the powers of this Part of this Act ; or

Consultation
with electricity
authority and
boards as to
certain works.

(b) lay down any main under the provisions of this Part of this Act other than a main extending for a distance of not more than two hundred yards from any main laid down in accordance with proposals previously made under this section ;

they shall give to the Minister of Fuel and Power and to the electricity authority and the electricity board and the gas board notice of their proposals and such information with regard thereto as the electricity authority or the electricity board or the gas board may within six weeks of the receipt of such notice reasonably require and shall consult with the electricity authority and the electricity board and the gas board on such proposals Any dispute between the Corporation and the electricity authority or the electricity board or the gas board as to whether any information is reasonably required by the electricity authority or the electricity board or the gas board under this subsection shall be referred to and determined by the Minister of Fuel and Power.

PART IX
—cont.

(2) Without prejudice to the generality of subsection (1) of this section such information shall include particulars of the proposals (if any) of the Corporation as to the standards of heat proposed to be maintained in premises supplied with heat under the powers of this Part of this Act and the measures to be taken with respect to—

- (a) the securing of the safety of the mains pipes and apparatus of the electricity authority and the electricity board and the gas board from damage or injury arising directly or indirectly from any mains or pipes to be laid down or placed by the Corporation under the powers of this Part of this Act ;
- (b) the insulation of any such last-mentioned mains or pipes so as to prevent the escape of heat therefrom ;
- (c) the maximum and minimum temperatures and pressures at which hot water or steam may be stored transmitted or distributed by the Corporation ;
- (d) the methods for measuring the quantity temperature and pressure of the hot water or steam so stored transmitted or distributed ; and
- (e) the independent testing of such measurements.

(3) The electricity authority and the electricity board and the gas board or any of them may within three months after the receipt of such notice or the receipt of such information (whichever is the later) make representations to the Minister of Fuel and Power with respect to such proposals.

(4) If no such representations are made the Corporation shall not proceed except in accordance with the proposals sent to the electricity authority and the electricity board and the gas board or any alteration thereof which may be agreed.

(5) If any such representations are made the Corporation shall not proceed with their proposals except with the approval of the Minister of Fuel and Power and in accordance with any modification of such proposals which the Minister of Fuel and Power may require.

(6) The provisions of this section shall not apply to the construction extension modification or enlargement of a station for providing heat under the powers of this Part of this Act.

Attachment
of heating
mains etc.

64. The provisions of section 7 (Attachment of street lamps brackets etc.) of this Act shall extend and apply to such brackets mains electric lines and attachments as may be required for the purposes of the heating undertaking as if they were mentioned in that section.

65.—(1) For the purposes of the heating undertaking or in connection with the use or sale of electricity, under the provisions of subsection (2) of section 58 (Works for provision of heat) of this Act the Corporation may lay down or erect electric lines and apparatus—

PART IX
—cont.

Power to lay
down or erect
electric lines
etc.

(a) in under or over any street in the borough subject however to the provisions of subsection (3) of this section ;
and

(b) with the consent of every owner and occupier of any land in the borough not forming part of a street in on or over that land ;

and may from time to time inspect repair alter or renew or may at any time remove any electric line or apparatus laid down or erected by them whether by virtue of this section or otherwise :

Provided that a consent required for the purposes of this subsection shall not be unreasonably withheld and any question whether such consent is or is not unreasonably withheld shall be referred to and determined by the Minister.

(2) (a) Where the Corporation in the exercise of the powers of this section lay down or erect any electric line or apparatus in on or over any land not forming part of a street or inspect repair alter renew or remove any electric line or apparatus laid down or erected in on or over any such land they shall from time to time pay compensation to every person interested in that land for any damage done to or injurious affection of that land by reason of the inspection laying erection repair alteration renewal or removal of the electric line or apparatus.

(b) Any dispute as to the amount of compensation to be paid under this subsection shall be determined by arbitration.

(3) The following provisions of the Third Schedule to the Water Act 1945 shall apply with the necessary modifications to the laying down erection inspection repair alteration renewal or removal of electric lines and apparatus under this section and for the purpose of such application the borough shall be deemed to be the limits of supply and the expression "undertakers" means the Corporation :—

Section 22 (Power to break open streets) except the words "and outside those limits for the purpose of laying any mains which they are authorised to lay and of inspecting repairing renewing or removing mains" ;

Section 25 (Protection for railway companies navigation authorities tramway undertakers &c.) ;

Section 27 (Remedies where undertakers fail to comply with foregoing requirements) ;

PART IX
—cont.

Section 28 (Application of Part VI to verges and streets and highways not maintainable at the public expense); and

Section 93 (Protection for works of navigation authorities and for catchment boards and railways).

(4) The provisions for the protection of the Postmaster-General and his telegraphic lines which are contained in the Electricity (Supply) Acts 1882 to 1936 as amended by the Electricity Act 1947 and in the schedule to the Electric Lighting (Clauses) Act 1899 shall so far as applicable extend and apply to any electric lines or apparatus laid down or erected under this section and references in those provisions to the electricity board or the undertakers shall be construed as references to the Corporation.

(5) The powers of this section shall not be exercised except with the consent of the electricity authority and the electricity board.

Power to
supply fittings.

66.—(1) In any premises to which the Corporation supply or propose to supply heat they may provide (but not manufacture) and may supply by way either of sale or hire fittings and may instal repair renew or alter any fittings whether supplied by them or not and may provide any materials and do any work required in connection with such installation repair renewal or alteration.

(2) The Corporation may make such charges as may be agreed or in default of agreement as may be reasonable for any fittings supplied or any materials provided or work done under this section at the request of the owner or occupier of the premises supplied.

(3) Any fittings let by the Corporation for hire and marked or impressed with a sufficient mark or brand indicating the Corporation as the actual owners thereof—

(a) shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under process of any court or any proceedings in bankruptcy against the person in whose possession the same may be; and

(b) shall notwithstanding that they be fixed or fastened to any part of the premises in which they may be situate or to the soil under any such premises at all times continue to be the property of and (subject to the provisions of the Hire Purchase Act 1938) removable by the Corporation:

Provided that nothing in this subsection shall affect the valuation for rating of any rateable hereditament.

(4) All fittings supplied by the Corporation under any hire purchase agreement shall until payment of the final instalment of the purchase money for such fittings be deemed for the purposes of subsection (3) of this section to be fittings let for hire by the Corporation.

(5) (a) The Corporation shall as far as possible so adjust the charges to be made by them under this section as will taking one year with another meet any expenditure by them thereunder including interest upon any moneys borrowed for the purposes thereof and any sums carried to a sinking fund for repayment of moneys so borrowed.

(b) The total sums expended and received by the Corporation in connection with the purposes of this section in each year including interest and any sums carried to a sinking fund shall be separately shown in the abstract of accounts of the Corporation for that year.

(6) If any person wilfully injures or suffers to be injured any fittings belonging to the Corporation he shall be liable to a penalty not exceeding five pounds and the Corporation may do all such work as is necessary for repairing any injury done and may recover the expenses reasonably incurred by them in so doing from the offender and if the amount does not exceed twenty pounds summarily as a civil debt.

67.—(1) The Corporation may from time to time prescribe a scale of charges (hereafter in this Part of this Act referred to as “heating charges”) for heat supplied to premises under the powers of this Part of this Act and for connecting premises to the heating undertaking and (where premises have been disconnected from the said undertaking) for re-connecting premises thereto and where heat is so supplied to any premises the heating charges in accordance with the scale shall be payable by the occupier of those premises except in any case where the owner has agreed with the Corporation to pay the same in which case they shall be payable by the owner.

Heating
charges.

(2) The heating charges payable by any person may after a demand therefor be recovered from him by the Corporation either as a simple contract debt in any court of competent jurisdiction or if the amount does not exceed twenty pounds summarily as a civil debt and subject as hereinafter provided where a person fails to pay within seven days after a demand therefor any heating charges payable by him in respect of any premises the Corporation may cut off the supply of heat to the premises and recover the expenses reasonably incurred by them in so doing in the same manner as the heating charges:

Provided that if before the expiration of the said seven days notice is given to them that there is a dispute as to the amount

PART IX
—cont.

due in respect of the heating charges or as to the liability to pay the same the Corporation shall not cut off the supply of heat until the dispute has on the application of either party been determined by a court of competent jurisdiction.

(3) Without prejudice to any other method of recovery any heating charges payable by the tenant of any premises belonging to the Corporation and connected as aforesaid may be recovered as rent due from him.

Security for
payment of
accounts.

68. The Corporation may require any person desiring to take a supply of heat or to be supplied with fittings or materials under this Part of this Act to deposit with the Corporation before taking such supply of heat or being supplied with such fittings such sum as the Corporation may reasonably require as security for the payment of any moneys which may become due from him to the Corporation in respect of such supply of heat or of any fittings or materials supplied to him in connection therewith.

Notice to be
given before
quitting
premises
supplied
with heat.

69.—(1) If the occupier of any premises supplied with heat by the Corporation quits the premises without giving notice of his intention so to do to the Corporation in manner provided by this section he shall be liable to pay to the Corporation all money accruing due for heat supplied by them to the premises and for meter rent (if any) up to the next date on which the register of the meter for heating on the premises is usually ascertained or the date from which any subsequent occupier of the premises requires the Corporation to supply heat to the premises whichever first occurs.

(2) The notice to be given under this section by an occupier of premises shall be given in writing and sent by registered post or otherwise delivered to the Corporation at the treasurer's office Preston so that it is received by the Corporation at least twenty-four hours before he quits the premises.

(3) The foregoing provisions of this section or a statement of the effect thereof shall be endorsed upon every demand note for heating charges payable to the Corporation.

Power to enter
premises.

70.—(1) Subject to the provisions of this section any authorised officer of the Corporation shall on producing if so required some duly authenticated document showing his authority have a right to enter at all reasonable hours any premises to which the Corporation are supplying or have agreed to supply heat under the powers of this Part of this Act or any premises in or upon which any fittings have been installed for the purpose of or in connection with supplying heat to any premises as aforesaid for the purpose of—

(a) inspecting and examining any fittings (whether belonging to the Corporation or not);

- (b) ascertaining whether there is or has been on or in connection with the premises any contravention of the provisions of this Part of this Act or of any byelaws made thereunder or of any conditions subject to which a supply of heat was agreed to be furnished to any premises ;
- (c) ascertaining whether or not circumstances exist which would authorise the Corporation to take any action or execute any work under this Part of this Act ;
- (d) taking any action or executing any work authorised or required by this Part of this Act to be taken or executed by the Corporation :

Provided that (except in cases of emergency arising from defects in any fittings) admission to any premises shall not be demanded as of right unless twenty-four hours' notice of the intended entry has been given to the occupier.

(2) If it is shown to the satisfaction of a justice of the peace on sworn information in writing—

- (a) that admission to any premises has been refused or that refusal is apprehended or that the premises are unoccupied or that the occupier is temporarily absent or that the case is one of urgency or that an application for admission would defeat the object of the entry ; and
- (b) that there is reasonable ground for entry into the premises for any such purpose as aforesaid ;

the justice may by warrant under his hand authorise the Corporation by any authorised officer to enter the premises if need be by force :

Provided that such a warrant shall not be issued unless the justice is satisfied either that notice of the intention to apply for a warrant has been given to the occupier or that the premises are unoccupied or that the occupier is temporarily absent or that the case is one of urgency or that the giving of such notice would defeat the object of the entry.

(3) An authorised officer of the Corporation entering any premises by virtue of this section or of a warrant issued thereunder may take with him such other persons as may be necessary and on leaving any unoccupied premises which he has entered by virtue of such a warrant shall leave them as effectually secured against trespassers as he found them.

(4) Every warrant granted under this section shall continue in force until the purpose for which the entry is necessary has been satisfied.

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—cont.

(5) If any person who in compliance with the provisions of this section or of a warrant issued thereunder is admitted into a factory or workplace discloses to any person any information obtained by him in the factory or workplace with regard to any manufacturing process or trade secret he shall unless such disclosure was made in the performance of his duty be liable to a penalty not exceeding one hundred pounds or to imprisonment for a term not exceeding three months.

(6) Nothing in this section shall authorise any authorised officer of the Corporation to enter any premises (other than offices or showrooms) belonging to or used by—

(a) the electricity authority or the electricity board for the purposes of or in connection with the generation or supply of electricity ; or

(b) the gas board for the purposes of or in connection with the manufacture storage or supply of gas.

Interference
with apparatus
etc.

71.—(1) If any person wilfully and without the consent of the Corporation turns on opens closes shuts off or otherwise interferes with any valve cock or other work or apparatus belonging to the Corporation and thereby improperly causes the supply of heat to be interfered with he shall be liable to a penalty not exceeding five pounds and (whether proceedings be taken against him in respect of his offence or not) the Corporation may recover from him the amount of any damage sustained by them either as a simple contract debt in any court of competent jurisdiction or if the amount does not exceed twenty pounds summarily as a civil debt.

(2) If any person wrongfully takes uses or diverts any heat from any apparatus provided for the purposes of this Part of this Act he shall (without prejudice to any other right or remedy of the Corporation) be liable to a penalty not exceeding five pounds.

Byelaws for
protection
of heating
undertaking.

72.—(1) The Corporation may make byelaws for preventing the waste misuse undue consumption or contamination of or interference with the circulation of hot water or steam used by them in connection with the supply and use of heat under this Part of this Act or for preventing the waste misuse or undue consumption of heat supplied under this Part of this Act.

(2) Byelaws under this section may include provisions—

(a) prescribing the size nature materials strength and workmanship and the mode of arrangement connection disconnection insulation alteration and repair of the fittings to be used ;

(b) forbidding the use of any fittings which are of such a nature or are so arranged or connected as to cause or permit or be likely to cause or permit—

(i) waste or misuse of or interference with the circulation of hot water or steam ;

(ii) reverberation in pipes ; or

(iii) waste misuse or undue consumption of heat ;

(c) requiring the testing and stamping of fittings and prescribing charges for such testing and stamping.

(3) If any person contravenes the provisions of any byelaw made under this section the Corporation may without prejudice to their right to take proceedings for a penalty in respect of such contravention cause any fittings belonging to or used by that person which are not in accordance with the requirements of the byelaws to be altered repaired or replaced and may recover the expenses reasonably incurred by them in so doing from the person in default either as a simple contract debt in any court of competent jurisdiction or if the amount does not exceed twenty pounds summarily as a civil debt.

73. The Corporation may if they think fit make an allowance by way of discount on all sums of money due to them for the supply of heat from any person who pays the same within such time of the demand thereof as the Corporation think fit to prescribe in that behalf and notice to that effect shall (if and so long as the Corporation shall allow such discount) be endorsed on every demand note in respect of such charges:

Discount
for prompt
payment.

Provided that the Corporation shall make the same allowance to all persons under similar conditions.

74.—(1) The provisions of the Town and Country Planning Act 1944 and of the Town and Country Planning Acts 1947 and 1951 shall where applicable apply to the heating undertaking as if that undertaking were a statutory undertaking and as if the Minister were the “ appropriate Minister ” within the meaning of section 119 of the Town and Country Planning Act 1947.

Application of
certain Acts to
heating
undertaking.

(2) Section 4 of the Special Roads Act 1949 shall apply in relation to the powers conferred on the Corporation by this Part of this Act to lay down or erect mains pipes electric lines and apparatus in under or over any land for the purpose of the heating undertaking as it applies in relation to the powers conferred on statutory undertakers as defined in that Act by or under any enactment to lay down or erect any apparatus on under or over any land and the expression “ statutory undertakers ” in the said section 4 shall be construed accordingly.

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—cont.

Reports etc.
with respect to
heating
undertaking
etc.

75.—(1) The Corporation shall give to the electricity authority and to the electricity board and the gas board such reports and returns and such information with respect to the heating undertaking as the electricity authority or the electricity board or the gas board may reasonably require and the electricity authority and the electricity board and the gas board shall give to the Corporation such reports and returns and such information with respect to any supply by them of heat as the Corporation may reasonably require.

(2) Any dispute between the Corporation on the one hand and the electricity authority or the electricity board or the gas board on the other hand as to whether any reports returns or information are reasonably required by the electricity authority or the electricity board or the gas board or the Corporation (as the case may be) shall be determined by the Minister of Fuel and Power.

Corporation
not to be
exempted from
proceedings
for nuisance.

76. Nothing in this Part of this Act shall exonerate the Corporation from any indictment action or other proceedings for nuisance in the event of any nuisance being caused or permitted by them.

Modification
of section 26
of Public
Utilities Street
Works Act
1950.

77.—(1) In any case in which—

- (a) the Corporation are the operating undertakers within the meaning of section 26 of the Act of 1950 in respect of undertakers' works authorised by this Part of this Act or are the owning undertakers within the meaning of that section in respect of apparatus laid down under the powers of this Part of this Act; and
- (b) either the electricity authority the electricity board or the gas board are the owning undertakers or (as the case may be) the operating undertakers;

the said section 26 shall be modified as follows:—

- (i) the notice to be given under subsection (2) of the said section by the operating undertakers to the owning undertakers shall be accompanied by plans sections and particulars of the works;
- (ii) the said notice shall be given not less than seven days before the works are commenced;
- (iii) any question which may arise under the said section as modified by this section between the operating undertakers and the owning undertakers shall be determined by arbitration in accordance with section 31 of the Act of 1950 and the proviso to subsection (2) of that section shall not apply.

(2) In this section the expression "the Act of 1950" means the Public Utilities Street Works Act 1950 and the several words and expressions to which meanings are assigned by that Act have the

same respective meanings unless there be something in the subject or context repugnant to such construction.

PART IX
—cont.

PART X

FINANCE AND RATING

78.—(1) The Corporation shall have power in addition and without prejudice to their powers of borrowing under the Act of 1933 to borrow without the consent of any sanctioning authority the sum requisite for the payment of the costs charges and expenses of this Act and they shall repay any sum so borrowed within such period as the Corporation may determine not exceeding five years from the passing of this Act. Power to borrow.

(2) The provisions of Part IX of the Act of 1933 so far as they are not inconsistent with this Part of this Act shall extend and apply to money borrowed under this section as if it were borrowed under Part IX of that Act and the period fixed by this section for the repayment of any money borrowed under this section shall as respects that money be the fixed period for the purpose of the said Part IX.

79.—(1) The Corporation may (if they think fit) establish a fund (hereafter in this section referred to as “the renewal and repairs fund.”) for the purpose of defraying the expenditure to renewing any buildings works plant tools machinery appliances horses carts vehicles boilers and equipment and apparatus in connection therewith office machinery furniture fittings and appliances or things and in maintaining and repairing paths and apparatus in public walks and pleasure grounds and may from time to time apply any fund so established or any part thereof in defraying such expenditure but this section shall not apply to any buildings works plant appliances or things for the purposes of any of the undertakings of the Corporation in respect of which they have provided a reserve fund or to any building in respect of which they are required by the Acts relating to housing to keep a housing repairs account. Renewal and repairs fund.

(2) The Corporation may from time to time pay out of the revenue of the general rate fund such sums as they think fit into a fund to be established under this section.

(3) When the renewal and repairs fund shall amount to the sum of fifty thousand pounds or such larger sum as may from time to time be approved by the Minister the Corporation shall cease to make payments into the said fund but if the said fund is at any time reduced below the sum of fifty thousand pounds or such larger sum as aforesaid the Corporation may recommence and continue payments until the said fund be restored to the sum of fifty thousand pounds or such larger sum as aforesaid.

PART X
—cont.

(4) (a) Pending the application of moneys of the renewal and repairs fund to the purposes authorised by this section such moneys shall (unless applied in any other manner authorised by any enactment) be invested in statutory securities.

(b) Any income arising from the investment of the moneys in the renewal and repairs fund in manner provided by this subsection shall be carried to and form part of the general rate fund and (subject to the limitation imposed by subsection (3) of this section) an amount equivalent to such income shall be credited to the renewal and repairs fund.

(5) Any money standing to the credit of the fund or funds established by the Corporation under section 22 (Renewal and repairs fund) of the Preston Corporation Act 1933 shall forthwith be carried to the credit of the renewal and repairs fund authorised by this section.

Insurance
fund.

80.—(1) The Corporation may (if they think fit) establish a fund to be called "the insurance fund" with a view to providing a sum of money which shall be available for making good all such losses damages costs and expenses as may from time to time be specified in a resolution of the council (hereafter in this section referred to as "the specified risks").

(2) The establishment of an insurance fund under this section shall not prevent the Corporation from procuring or causing to be procured insurance offices against the whole or any part of the specified risks.

(3) In each year after the establishment of the insurance fund the Corporation shall pay into that fund either—

(a) such a sum as shall in their opinion be not less than the aggregate amount of the premiums which would be payable if the Corporation fully insured in some insurance office of good repute against the specified risks; or

(b) if the Corporation insure in some insurance office against the whole or any part of all or any of the specified risks such sums as will together with the premiums paid for the last-mentioned insurance be not less than the aggregate amount aforesaid.

(4) When the insurance fund shall amount to the prescribed amount (as hereinafter defined) the Corporation may (if they think fit) discontinue the yearly payments to the fund but if the fund be at any time reduced below the prescribed amount the Corporation shall recommence and continue the yearly payments to that fund in accordance with subsection (3) of this section until the fund be restored to the prescribed amount.

(5) The Corporation shall provide the yearly payments aforesaid by contributions from the revenue of the general rate fund and shall show the same in their accounts under the separate heading or division in respect of the particular undertaking department or service of the Corporation which if the specified risks were insured against in an insurance office would be properly chargeable with the payment of the premium of such insurance.

(6) (a) Except so far as the insurance fund and the proceeds of sale of securities in which that fund is invested may be necessary to meet losses damages costs and expenses in consequence of the specified risks or any of them all moneys for the time being standing to the credit of the insurance fund shall (unless applied in any other manner authorised by any enactment) be invested in statutory securities and the interest and other annual proceeds received by the Corporation in respect of such investments shall be carried to the general rate fund.

(b) In addition to the sum required to be paid into the insurance fund by subsection (3) of this section the Corporation shall in every year so long as the insurance fund is less than the prescribed amount carry to the credit of that fund out of the general rate fund an amount equal to the interest and other annual proceeds carried to the general rate fund in pursuance of the last preceding paragraph.

(c) If and so long as the insurance fund amounts to the prescribed amount the interest and other annual proceeds received by the Corporation in respect of or on investments forming part of the insurance fund and carried to the general rate fund may be apportioned in the accounts of the Corporation between the several undertakings departments or services liable to contribute to the insurance fund in such shares or proportions as may be equitable.

(7) (a) The insurance fund shall be applied to meet any losses damages costs or expenses sustained by the Corporation in consequence of the whole or any part of all or any of the specified risks in the order of the dates on which such losses damages costs or expenses become ascertained and if at any time and from time to time the insurance fund shall be insufficient to make good any such losses damages costs or expenses the Corporation may with the sanction of the Minister borrow at interest under and subject to the provisions of Part IX of the Act of 1933 such sums of money as will be necessary to make up the deficiency.

(b) The amounts of the annual charges in respect of interest on and repayment of principal of any sums borrowed in pursuance of this subsection and the amounts of any such deficiencies as aforesaid not made up by borrowing shall be paid out of the

PART X
—cont.

general rate fund and charged in the accounts of the Corporation under the separate headings or divisions in respect of such undertakings departments or services of the Corporation and in such proportions as the Corporation may determine having regard to the risks through which such deficiencies arise.

(8) Any money standing to the credit of the insurance fund established by the Corporation under section 21 (Insurance fund) of the Preston Corporation Act 1933 shall forthwith be carried to the credit of the insurance fund authorised by this section.

(9) In this section the expression “the prescribed amount” means such sum as may from time to time be prescribed by the Corporation.

Recovery of
rates from
certain
owners.

81.—(1) Where the owner of any hereditament has agreed with the occupier thereof that the owner shall pay the general rate or the water rate charged on such hereditament the owner shall be liable to pay to the Corporation so much of any payment in respect of rent received by him from the occupier as shall represent the proportion of rate included in such payment and so much of such payment may on proof of such agreement be recovered by the Corporation from the owner in the same manner and subject to the same conditions in and subject to which rates are recoverable from occupiers of rated hereditaments.

The remedy of the Corporation under this section shall be in addition and without prejudice to their other remedies for the recovery of rates.

(2) For the purposes of this section the expression “owner” in relation to a hereditament means the person who is entitled to receive the rent payable in respect thereof.

(3) This section shall not apply to any hereditaments in the case of the general rate to which subsection (1) of section 11 of the Rating and Valuation Act 1925 applies by virtue of resolutions of the council or to which subsection (1) of section 55 (Owner may be rated instead of occupier in certain cases) of the Preston Corporation Act 1921 applies.

Expenses of
public
ceremonies etc.

82. The Corporation may pay—

- (a) reasonable expenses in connection with official and courtesy visits by or on behalf of the Corporation and payments for travelling expenses and for expenses reasonably incurred by or on behalf of any member or officer of the Corporation in connection therewith; and
- (b) reasonable expenses in connection with the presentation of the freedom of the borough to persons whom the council may resolve to admit as honorary freemen.

PART XI

MISCELLANEOUS

83.—(1) In any proceedings under any enactment—

Evidence of
appointments
authority etc.

- (a) a document purporting to be certified by the town clerk as a copy of a resolution order or report passed or made by the council or by any committee thereof on a specified date shall be evidence that that resolution order or report was duly passed or made by the council or that committee on the said date ;
- (b) a document purporting to be so certified as a copy of a minute duly drawn up entered and signed in accordance with paragraph 3 of Part V of the Third Schedule to the Act of 1933 of the proceedings of a meeting of the council or of any committee thereof on a specified date shall be evidence to the same extent as the original minute ;
- (c) a document purporting to be so certified as a copy of the appointment of or of any authority given to an officer of the council or any committee thereof on a specified date shall be evidence that that appointment or authority was duly made or given by the council or that committee on the said date.

(2) In this section the expression “ officer ” includes a servant solicitor or agent.

(3) Section 286 of the Act of 1936 shall cease to apply to the Corporation.

84. A resolution of the council under section 277 of the Act of 1933 may refer either to an officer by name or to the holder or holders for the time being of the office or offices stated therein.

Authorisation
of appearance
of council's
officers in legal
proceedings.

85. Notwithstanding anything contained in paragraph 3 of Part V of the Third Schedule to the Act of 1933 or in any other enactment or rule of law to the contrary the minutes of the proceedings of meetings of the council or of any committee thereof may be recorded on loose leaves consecutively numbered the minutes of the proceedings of any meeting being signed and each leaf comprising those minutes being initialled at the same or next ensuing meeting of the council or committee (as the case may be) by the person presiding thereat and any minutes purporting to be so signed shall be received in evidence without further proof and for the purposes of sub-paragraph (2) of the said paragraph 3 shall be deemed to have been made and signed in accordance with sub-paragraph (1) thereof.

As to minutes
of council
meetings etc.

PART XI
—cont.

Transfer of
recreation
allotment to
Corporation
for
educational
purposes and
extinction of
trusts and
rights of
common.

86.—(1) From and after the passing of this Act the recreation allotment shall be vested in the Corporation for educational purposes freed and discharged from all rights of common and all rights in and over the same or any part or parts thereof and the trusts concerning the same contained in the Ribbleton Inclosure Award and all such rights (if any) and trusts shall be extinguished and no claim for compensation shall lie or accrue in respect thereof.

(2) In this section the following expressions have the meanings hereby respectively assigned to them:—

“ Ribbleton Inclosure Award ” means the award made by the inclosure commissioners under the Inclosure Acts 1845 to 1868 and dated the twenty-fourth day of March one thousand eight hundred and seventy ;

“ the recreation allotment ” means the piece of land set out by the Ribbleton Inclosure Award in trust as a place of exercise and recreation for the inhabitants of the township of Ribbleton and hamlet of Brockholes and neighbourhood being a piece of land at Ribbleton in the borough containing 5.262 acres or thereabouts and bounded on the west by Farrington Lane on the north-east by a road now unnamed but shown as Ribbleton Moor New Road on the map annexed to the Ribbleton Inclosure Award and on the south-east by land owned by the Corporation which piece of land is shown as enclosure numbered 380 in the borough on the 1/2500 ordnance map Lancashire sheet LXI.7 (1932 edition).

As to hire
of floral
decorations.

87. The Corporation may let on hire plants flowers and other floral decorations and may make such charges therefor as they may think fit.

Medicated and
other baths.

88. The Corporation may erect construct provide maintain furnish equip regulate and manage medicated and other baths (including baths the efficient properties of which are due to agencies other than water but excluding baths for use for therapeutic purposes) and they may demand and take reasonable charges for the use thereof.

Provision of
meals for old
people.

89.—(1) In addition to their power under section 31 of the National Assistance Act 1948 to make contributions to voluntary organisations whose activities consist in or include the provision of recreation or meals for old people the Corporation may themselves provide meals for old people whether in their own homes or in centres provided by the Corporation under subsection (2) of this section for the purpose of promoting the welfare of old people in the borough.

(2) The Corporation may provide maintain and manage in premises provided by them in the borough centres for the provision or distribution of meals for old people.

(3) The Corporation may recover from persons availing themselves of the services provided under this section such reasonable charges as they may determine.

(4) The Corporation shall in exercising their powers under this section be subject to all enactments and rules of law relating to the supply and distribution of food and the provision of meals for the public by private persons.

90.—(1) Notwithstanding anything in any local enactment relating to the maximum tolls which can be charged for passengers and parcels carried on motor omnibuses or other public service vehicles which the Corporation are authorised to run the Corporation shall for the purposes of section 72 and section 104 of the Road Traffic Act 1930 be deemed to be a local authority authorised to run public service vehicles under Part V of that Act.

As to fares
and charges on
public service
vehicles.

(2) In this section the expression “ public service vehicle ” has the same meaning as in the Road Traffic Acts 1930 to 1947.

91. The provisions of the Town Police Clauses Act 1847 shall be extended to empower the Corporation to make byelaws for declaring that to the extent determined by such byelaws those provisions and the byelaws of the Corporation in force with respect to hackney carriages shall apply to every motor vehicle standing or plying for hire in the borough notwithstanding that such vehicle stands or plies for hire on private premises only:

Provisions as
to motor
vehicles let
for hire.

Provided that this section shall not apply to any such vehicle which is kept by any company firm or person in connection with any business carried on by such company firm or person as funeral directors or owners of funeral vehicles available for hire and used wholly or mainly in connection with such business or is kept and used ordinarily for the purpose of being let on hire by the day or for longer periods of hire or to a public service vehicle as defined in the Road Traffic Acts 1930 to 1947 or to any vehicle belonging to or used by the commission for the purpose of carrying passengers and their luggage to or from any of their railway stations or railway premises or to the drivers or conductors of such vehicles:

Provided also that nothing in this section shall empower the Corporation to fix the site of the stand or starting place of any motor vehicle standing or plying for hire in any railway station or railway premises or in any yard belonging to the commission except with the consent of the commission.

PART XI
—cont.Restrictions on
use of loud-
speakers in
streets.

92.—(1) No person shall for the purpose of advertising any entertainment or meeting or any trade or business or any part of a trade or business operate or cause or suffer to be operated any loudspeaker when such loudspeaker is in any street in the borough.

(2) No person shall operate or cause or suffer to be operated any loudspeaker for any purpose when such loudspeaker is in any street in the borough unless he shall have given notice to the chief constable of the borough so as to be received by him at least twenty-four hours before such loudspeaker is operated.

(3) Any person who contravenes the provisions of this section shall be liable to a penalty not exceeding five pounds.

(4) This section shall not apply to the use of a loudspeaker—

(a) by the Corporation or the police in the execution of their duty or in case of emergency ; or

(b) by the commission for the purpose of announcements to their passengers or staff at any station or depot of the commission or by any persons operating a service or services of public service vehicles for the purpose of announcements to their passengers or staff at any of their stations or depots ; or

(c) in connection with a parliamentary or local government election ; or

(d) by a travelling showman in any part of a street while such part thereof is being used as a pleasure fair and such fair is open to the public.

(5) For the purposes of this section a loudspeaker shall not be deemed to be in use in connection with (a) a parliamentary election if it is used at any time other than on or between the date of the issue of the writ of election and the date of the declaration of the result of the election or (b) a local government election if it is used at any time other than on or between the day appointed for giving notice of the election and the day on which a candidate is deemed to be elected or as the case may be the date on which a candidate is declared to be elected.

(6) In this section the expression “ loudspeaker ” includes an amplifier or similar instrument.

False state-
ments to
obtain rent
rebate
reductions in
payments
under
Education
Acts etc.

93. If any person for the purpose of obtaining for himself or any other person a rebate in the rent of any house belonging to the Corporation or a reduction in the amount of any payment due to the Corporation under the Education Acts 1944 to 1948 or any regulations made thereunder—

(a) knowingly makes to the Corporation or any of their employees a false statement or false representation relating to his or that other person's ability to pay the rent or make the payment ; or

(b) produces or furnishes or knowingly allows to be produced or furnished to the Corporation or any of their employees any document or information relating as aforesaid which he knows to be false in a material particular ;

he shall be liable to a fine not exceeding fifty pounds or to imprisonment for a term not exceeding four months or to both such fine and imprisonment.

94.—(1) As from the appointed day except in any case in which the Corporation otherwise require so much of section 7 of the Theatres Act 1843 as provides that the actual and responsible manager for the time being of a theatre in respect of which a licence is granted under that Act and two sureties shall become bound in penal sums for the purposes mentioned in the said section shall cease to have effect as respects licences granted by the Corporation under that Act. Dispensation
by Corpora-
tion with bonds
by theatre
managers.

(2) (a) If the licensee of a theatre licensed by the Corporation under the Theatres Act 1843 uses it or allows it to be used in contravention of the provisions of that Act or any rules made by the Corporation thereunder or of the terms conditions or restrictions upon or subject to which the licence was granted he shall be liable to a penalty not exceeding fifty pounds and to a daily penalty not exceeding ten pounds.

(b) Upon a conviction under this subsection the licence granted in respect of the theatre may be revoked by the Corporation.

(3) If the Corporation delegate to the justices of the borough sitting in petty sessions the powers and duties conferred on the Corporation in respect of the licensing of houses or places for the performance of stage plays subsections (1) and (2) of this section shall have effect as if references to such justices were substituted therein for references to the Corporation.

95.—(1) Any premises in the borough used principally for the preparation cooking and sale of fish potatoes or other similar commodities where quantities of heated or boiling fat or oil are used for the purpose of such preparation and cooking shall be provided with such portable efficient and adequate fire extinguishing apparatus and appliances as the Corporation may reasonably require. Fire appliances
for certain
premises.

(2) The occupier of any such premises who shall fail to comply with any requirement under this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

(3) Any person aggrieved by a requirement of the Corporation under this section may appeal to a court of summary jurisdiction.

PART XI
—cont.Dangerous
trees.

96.—(1) If it appears to the Corporation that any tree within the borough is in such a condition as to be dangerous to persons or buildings in or on premises adjoining the premises on which such tree is growing the Corporation may serve a notice on the owner of the tree or on the occupier of the premises on which such tree is growing requiring him to remove top lop or prune the tree within twenty-one days so as to prevent such danger.

(2) Any person aggrieved by a requirement imposed by a notice under the preceding subsection may appeal to a court of summary jurisdiction.

(3) If any person fails to comply with a notice served on him under this section the Corporation may themselves carry out the requirement of their notice and recover from that person the expenses reasonably incurred by them in so doing.

Derelict petrol
tanks.

97.—(1) Where a tank or other fixed container which has been used for the storage of petroleum spirit and is no longer used for that purpose is kept on any premises within the borough the occupier of the premises shall take all such steps as may be reasonably necessary to prevent danger from such container.

(2) Any officer of the Corporation duly authorised by them may on producing a copy of his authority purporting to be signed by the town clerk require the occupier of the premises on which is situated any tank or other fixed container which has been used for the storage of petroleum spirit and is no longer used for that purpose to show him such container and permit him to ascertain whether steps have been taken to comply with the provisions of this section.

(3) Any person failing to comply after due warning with the provisions of subsection (1) of this section shall be guilty of an offence and shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(4) In this section the expression "petroleum spirit" has the same meaning as in the Petroleum (Consolidation) Act 1928.

For preventing
obstruction to
streams by
culverts etc.

98.—(1) Where any obstruction is or may be caused to any river or stream by any inadequate or insufficient culvert channel or other work the Corporation may within the borough reconstruct improve repair or remove such culvert channel or work or may construct and maintain a proper and sufficient or enlarged culvert channel or other work.

(2) The Corporation and any other local authority or person may enter into and carry into effect agreements for and with respect to the carrying out of any works of construction reconstruction improvement repair maintenance or removal for the purposes of this section.

(3) Nothing in this section shall be deemed to—

- (a) restrict the exercise by the Corporation of their powers in relation to culverts channels or other works; or
- (b) impose upon the Corporation any liability to maintain a culvert channel or other work.

(4) Nothing in this section shall authorise the Corporation to execute any works in through or under or so as to affect any lands or works belonging to the commission and used by them for the purposes of their railways canals or inland navigations without the consent of the commission but such consent shall not be unreasonably withheld and any question as to whether such consent is unreasonably withheld shall be determined by arbitration.

(5) Nothing in this section shall authorise the Corporation to execute any work in or in connection with any river or stream for the time being forming part of the main river of the Lancashire River Board without the consent in writing of the said board which consent may be given subject to such reasonable terms and conditions as the said board may think fit but such consent shall not be unreasonably withheld and any question whether such consent is or is not unreasonably withheld or whether such terms and conditions are or are not reasonable shall be determined by the Minister of Agriculture and Fisheries.

99.—(1) If any river or stream or any part thereof within the borough is or becomes in such a state that the proper flow of water along the same is obstructed or impeded the Corporation may by notice require the owner or occupier of any lands abutting on any part of such river or stream which is in such a state as aforesaid or any person by whose act or default the proper flow of water in such river or stream is obstructed or impeded to cleanse or put in proper order such river or stream or part thereof or to carry out such other works as may be reasonably required so as to allow the proper flow of water in such river or stream.

Cleansing of
rivers and
streams.

(2) The provisions of section 290 of the Act of 1936 shall apply in relation to notices given under this section as they apply in relation to the notices mentioned in subsection (1) of that section.

(3) Nothing in this section shall authorise the Corporation to execute or require the commission to execute any works in through or under or so as to affect any lands or works belonging to the commission and used by them for the purposes of their railways canals or inland navigations without the consent of the commission but such consent shall not be unreasonably withheld and any question as to whether such consent is unreasonably withheld shall be determined by arbitration.

PART XI
—cont.

(4) The powers of this section shall not be exercised in relation to any river or stream for the time being forming part of the main river of the Lancashire River Board without the consent in writing of the said board which consent may be given subject to such reasonable terms and conditions as the said board may think fit but such consent shall not be unreasonably withheld and any question whether such consent is or is not unreasonably withheld or whether any such terms and conditions are or are not reasonable shall be determined by the Minister of Agriculture and Fisheries.

Entry for
purposes of the
last two pre-
ceding sections.

100.—(1) Any authorised officer of the Corporation shall on producing if so required some duly authenticated document showing his authority have a right to enter any premises at all reasonable hours for the purpose of—

- (a) inspecting any river or stream or any culvert channel or other work ;
- (b) ascertaining whether or not circumstances exist which would authorise or require the Corporation to take any action or execute any work under the last two preceding sections ;
- (c) taking any action or executing any work authorised or required by the last two preceding sections to be taken or executed by the Corporation :

Provided that admission to any premises shall not be demanded as of right unless twenty-four hours' notice of the intended entry has been given to the occupier.

(2) The provisions of this section shall not authorise any officer of the Corporation to enter any lands or works belonging to the commission and used by them for the purposes of their railways canals or inland navigations without the consent of the commission but such consent shall not be unreasonably withheld and any question as to whether such consent is unreasonably withheld shall be determined by arbitration.

(3) If any person who in compliance with the provisions of this section is admitted into a factory workshop or workplace discloses to any person any information obtained by him in the factory workshop or workplace with regard to any manufacturing process or trade secret he shall unless such disclosure was made in the performance of his duty be liable to a fine not exceeding one hundred pounds or to imprisonment for a term not exceeding three months.

Licensing of
stevedores etc.

101.—(1) Nothing in section 91 (Power for Corporation to charge for services in shipping unshipping &c. goods at dock) of the Ribble Navigation and Preston Dock Act 1883 shall

authorise any person to employ their own servants or labourers to perform any service or labour in or upon ships vessels lighters or river craft in the dock or in or on the dock works quays and sheds of the Corporation except under and in accordance with the conditions of a licence granted by the Corporation.

PART XI
—cont.

(2) Subject to the provisions of subsection (3) of this section any such licence may be granted by the Corporation for such period and subject to such conditions (including conditions as to the charges to be made by the holder of the licence) as the Corporation think fit and may at any time be revoked by the Corporation:

Provided that the Corporation shall not unless they determine by resolution that it is expedient so to do with a view to securing the better use of the port in the national interest or the economical improvement maintenance or management thereof either—

- (i) refuse or revoke a licence under this section or impose any conditions thereon; or
- (ii) without the consent of the applicant grant any licence for a period of less than seven years.

(3) If any person being an applicant for or the holder of any such licence wishes to dispute any determination of the Corporation as respects the granting or revocation of the licence or the conditions to be attached thereto including the period for which it is to be granted the dispute shall be referred to an arbitrator who shall make such order as to the grant or revocation of the licence or the conditions which are to be attached thereto as he thinks just and proper in all the circumstances and the Corporation shall give effect to his order.

(4) If any person employs his own servants or labourers in such circumstances that a licence is necessary under this section and he does so otherwise than under and in accordance with such a licence he shall be liable on summary conviction to a penalty not exceeding ten pounds and if the contravention in respect of which he is so convicted is continued after the conviction he shall be guilty of a further offence and liable in respect thereof on summary conviction to a daily penalty not exceeding ten pounds.

(5) Where under this section a dispute is to be referred to an arbitrator the reference shall be to a single arbitrator to be agreed upon between the parties to the dispute or in default of such agreement appointed on the application of either party by the Minister of Transport and subject to the provisions of this section the provisions of the Arbitration Act 1950 shall apply to any such arbitration.

PART XI
—cont.

(6) Nothing in this section shall authorise the exercise of any powers thereby conferred so far as such exercise is inconsistent with or contrary to the provisions of any scheme made under the Dock Workers (Regulation of Employment) Act 1946.

Corporation
may provide
weighing
machines.

102. The Corporation may in any premises belonging to or occupied by them provide and maintain weighing machines for ascertaining the weight of persons and may charge for the use thereof.

PART XII
GENERAL

Damages and
charges to be
settled by
court.

103. Where any damages expenses or charges are directed or authorised to be paid or recovered in addition to any penalty for any offence in this Act mentioned the amount of such damages expenses or charges in case of dispute respecting the same may be settled and determined by the court before whom any offender is convicted.

Determination
of compensa-
tion.

104. When any compensation costs damages or expenses is or are by this Act directed to be paid and the method for determining the amount thereof is not otherwise provided for such amount shall in case of dispute be ascertained in the manner provided by subsection (2) of section 278 of the Act of 1936.

Inquiries by
Ministers.

105. The Minister the Minister of Transport the Minister of Fuel and Power and the Minister of Civil Aviation may hold such inquiries as they respectively may consider necessary in regard to the exercise of any powers conferred upon them or the giving of consents under this Act and section 290 of the Act of 1933 shall apply accordingly.

Application of
Arbitration
Act.

106. Where under this Act any question or dispute is to be referred to an arbitrator or to arbitration (other than questions or disputes to which the provisions of the Lands Clauses Acts or of section 104 (Determination of compensation) of this Act apply) then unless other provision is made the reference shall be to a single arbitrator to be agreed upon between the parties to the question or dispute or in default of such agreement appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1950 shall apply to any such arbitration.

Confirming
authority for
byelaws.

107.—(1) As respects byelaws made under this Act the confirming authority for the purpose of section 250 of the Act of 1933 shall be the Minister except that in the case of byelaws made

under the sections mentioned in the first column of the following table the confirming authority shall be the authority respectively mentioned in the second column of that table:—

PART XII
—cont.

Section 35 (Byelaws as to meat for feeding animals)...	Minister of Food.
Section 37 (Boating pools)	Secretary of State.
Section 44 (Byelaws relating to wood fuel)	Board of Trade.
Section 51 (Byelaws as to establishments for massage or special treatment).	Secretary of State.

(2) Notwithstanding the provisions of any Act or Order relating to the procedure for making byelaws by the Corporation the provisions of section 250 of the Act of 1933 shall apply to all byelaws to be made by the Corporation in respect of the transport undertaking and in the application of such last-mentioned provisions the Minister of Transport shall be the confirming authority.

108.—(1) For the purposes of this Act the expression “the appointed day” means such day as may be fixed by resolution of the council subject to and in accordance with the provisions of this section.

(2) Different days may be fixed under this section for the purpose of different provisions of this Act.

(3) The Corporation shall cause to be published in a local newspaper circulating in the borough notice—

(a) of the passing of any such resolution and of the date fixed thereby; and

(b) of the general effect of the provisions of this Act coming into operation as from that date;

and the date so fixed shall not be earlier than the expiration of one month from the date of publication of the said notice.

(4) Either—

(a) a copy of any such newspaper containing any such notice; or

(b) a photostatic or other reproduction certified by the town clerk to be a true reproduction of a page or part of a page of any such newspaper bearing the date of its publication and containing any such notice;

shall be evidence of the publication of the notice and of the date of the publication.

PART XII
—cont.

(5) Where any provision of this Act coming into operation on a day fixed by resolution under this section requires the licensing or registration of a person carrying on any business or of premises used for any purpose it shall be lawful for any person who—

(a) immediately before that day was carrying on that business or using any premises for that purpose ; and

(b) had before that day duly applied for the licence or registration required by that provision ;

to continue to carry on that business and to use those premises for that purpose until he is informed of the decision with regard to his application and if the decision is adverse during such further time as is provided under subsection (2) of section 110 (Appeals) of this Act.

Restriction
on right to
prosecute.

109. Proceedings in respect of an offence created by or under this Act (except Part VII (Sale of wood fuel) thereof) shall not without the written consent of the Attorney-General be taken by any person other than a party aggrieved or the Corporation.

Appeals.

110.—(1) Section 300 of the Act of 1936 shall apply with respect to appeals to a court of summary jurisdiction under any enactment in this Act as it applies with respect to such appeals under any enactment in that Act and sections 301 and 302 of that Act shall apply accordingly.

(2) Where any requirement refusal or other decision of the Corporation against which a right of appeal is conferred by this Act—

(a) involves the execution of any work or the taking of any action ; or

(b) makes it unlawful for any person to carry on any business which he was lawfully carrying on up to the time of the requirement refusal or decision or to use any premises for any purpose for which they were lawfully used up to that time ;

then until the time for appealing has expired or when an appeal is lodged until the appeal is disposed of or withdrawn or fails for want of prosecution—

(i) no proceedings shall be taken in respect of any failure to execute the work or take the action nor shall the Corporation themselves execute the work or take the action ; and

(ii) that person may carry on that business and use those premises for that purpose.

111. The sections of the Act of 1936 hereinafter mentioned shall have effect as if they were re-enacted in this Act and in terms made applicable thereto:—

PART XII
—cont.

* Application of
provisions of
Act of 1936.

- Section 271 (Interpretation of “provide”);
- Section 275 (Power of local authority to execute certain work on behalf of owners or occupiers);
- Section 276 (Power of local authority to sell certain materials);
- Section 277 (Power of councils to require information as to ownership of premises);
- Section 284 (Authentication of documents);
- Section 287 (Power to enter premises);
- Section 288 (Penalty for obstructing execution of Act);
- Section 289 (Power to require occupier to permit works to be executed by owner);
- Section 291 (Certain expenses recoverable from owners to be a charge on the premises: power to order payment by instalments);
- Section 292 (Power to make a charge in respect of establishment expenses);
- Section 293 (Recovery of expenses &c.);
- Section 294 (Limitation of liability of certain owners);
- Section 295 (Power of local authority to grant charging orders);
- Section 297 (Continuing offences and penalties);
- Section 299 (Inclusion of several sums in one complaint &c.);
- Section 304 (Judges and justices not to be disqualified by liability to rates);
- Section 328 (Powers of Act to be cumulative);
- Section 329 (Saving for certain provisions of the Land Charges Act 1925):

Provided that—

- (a) the said sections 277 287 289 291 292 294 295 and 329 shall only apply to the provisions contained in Part II (Streets) Part III (Sanitation and buildings) Part IV (Nuisances) and Part V (Food) of this Act and in section 96 (Dangerous trees) of this Act;
- (b) the said sections 287 and 288 shall not apply to the provisions of section 27 (Prohibition of sale of verminous articles) of this Act;

PART XII
—cont.

(c) the said section 293 shall not apply to the provisions contained in Part IX (Heating undertaking) of this Act or to the following sections of this Act (namely):—

Section 87 (As to hire of floral decorations);

Section 88 (Medicated and other baths); and

Section 102 (Corporation may provide weighing machines).

Incorporation
of sections
of Preston
Corporation
Act 1914.

112. The following sections of the Preston Corporation Act 1914 hereinafter mentioned shall so far as they are applicable for the purpose extend and apply with the necessary modifications to and in relation to this Act and be incorporated with and form part of this Act:—

Section 152 (Recovery of penalties);

Section 157 (Persons acting in execution of Act not to be personally liable).

Repeal.

113. The following enactments are hereby repealed:—

Preston Improvement Act 1880—

Section 58 (Crossings for horses or vehicles over footways):

Preston Corporation Act 1900—

Section 41 (Cheap fares for labouring classes):

Preston Corporation Act 1914—

Section 77 (Power to require repair or taking down of dilapidated buildings);

Section 139 (Ejection of steam and waste gas):

Preston Corporation Act 1931—

Section 40 (Application to trolley vehicles of certain provisions of Acts of Corporation) so far as it relates to section 41 (Cheap fares for labouring classes) of the Preston Corporation Act 1900:

Preston Corporation Act 1933—

Section 21 (Insurance fund);

Section 22 (Renewal and repairs fund):

The Act of 1947—

Section 48 (Planting of trees in private streets);

Section 54 (Power to order alteration of chimneys);

Section 58 (As to neglected sites);

Section 69 (Power to lay out grass margins &c. in streets);

Section 70 (Prohibition of persons vehicles &c. on grass margins);

Section 71 (Power to provide tubs for trees &c.);

Section 103 (Prohibition on sale of verminous articles);

Section 107 (Registration of hawkers of food and their premises);

Section 130 (Amendment of section 22 of Preston Corporation Act 1933).

114. This Act shall be deemed to be an enactment passed before and in force at the passing of the Town and Country Planning Act 1947 for the purposes of subsection (4) of section 13 and subsection (1) of section 118 of that Act. Saving for town and country planning.

115. For the protection of the area boards the following provisions shall unless otherwise agreed in writing between the Corporation and the area board concerned apply and have effect:— For protection of area boards.

(1) In this section—

“apparatus” means—

(a) in relation to the electricity board all or any electric lines and works (as respectively defined in the Electric Lighting Act 1882) belonging to that board;

(b) in relation to the gas board mains pipes or other apparatus belonging to such board;

and includes any structures constructed for the lodging thereunder of apparatus;

“area board” means in relation to any apparatus the electricity board or the gas board to whom such apparatus belongs;

“in” in a context referring to apparatus includes under over across along or upon:

(2) The Corporation shall so exercise the powers of the following sections of this Act as not to cause any damage to and as to avoid as far as reasonably practicable rendering less convenient the access to any apparatus:—

Section 5 (Trees grass verges and gardens);

Section 11 (Decorations in streets):

(3) The Corporation shall not pursuant to section 10 (Pavement lights and ventilators) of this Act consent to the provision of any means for the admission of light or air

PART XII
—cont.

through a pavement if such provision may cause damage to or render unreasonably inconvenient the access to any apparatus :

(4) Nothing in section 31 (Discharge of steam and waste gas) of this Act shall extend to the necessary discharge of steam or gas on any lands used in connection with the manufacture or storage of gas :

(5) Nothing in the following sections of this Act (namely) :—

Section 17 (Power to repair drains and private sewers) ;

Section 98 (For preventing obstruction to streams by culverts etc.) ;

Section 99 (Cleansing of rivers and streams) ;

Section 100 (Entry for purposes of the last two preceding sections) ;

shall authorise the Corporation to execute any works in under over across along or upon any operational lands within the meaning of the Town and Country Planning Act 1947 of an area board without the consent of the area board but such consent shall not be unreasonably withheld and any question whether such consent is unreasonably withheld shall be determined by arbitration :

(6) (a) Any difference which may arise between the Corporation and an area board under this section shall be referred to arbitration ;

(b) In settling any difference under this section the arbitrator may if he thinks fit require the Corporation to execute any temporary or other works so as to avoid so far as may be reasonably possible interference with any purposes for which the apparatus is used.

Costs of Act.

116. The costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the general rate fund and the general rate or out of money to be borrowed under this Act for that purpose.

Table of Statutes referred to in this Act

Short title	Session and chapter
Theatres Act 1843	6 & 7 Vict. c. 68.
Town Police Clauses Act 1847	10 & 11 Vict. c. 89.
Public Health Act 1875	38 & 39 Vict. c. 55.
Local Loans Act 1875	38 & 39 Vict. c. 83.
Telegraph Act 1878	41 & 42 Vict. c. 76.
Preston Improvement Act 1880	43 & 44 Vict. c. cxviii.
Electric Lighting Act 1882	45 & 46 Vict. c. 56.
Ribble Navigation and Preston Dock Act 1883	46 & 47 Vict. c. cxv.
Weights and Measures Act 1889	52 & 53 Vict. c. 21.
Public Health Acts Amendment Act 1890 ...	53 & 54 Vict. c. 59.
Private Street Works Act 1892	55 & 56 Vict. c. 57.
Electric Lighting (Clauses) Act 1899	62 & 63 Vict. c. 19.
Preston Corporation Act 1900	63 & 64 Vict. c. cxlv.
Open Spaces Act 1906	6 Edw. 7. c. 25.
Public Health Acts Amendment Act 1907 ...	7 Edw. 7. c. 53.
Finance (1909-10) Act 1910	10 Edw. 7. & 1 Geo. 5. c. 8.
Preston Corporation Act 1914	4 & 5 Geo. 5. c. lxxii.
Acquisition of Land (Assessment of Compensation) Act 1919	9 & 10 Geo. 5. c. 57.
Increase of Rent and Mortgage Interest (Restrictions) Act 1920	10 & 11 Geo. 5. c. 17.
Preston Corporation Act 1921	11 & 12 Geo. 5. c. xxv.
Land Charges Act 1925	15 & 16 Geo. 5. c. 22.
Roads Improvement Act 1925	15 & 16 Geo. 5. c. 68.
Public Health Act 1925	15 & 16 Geo. 5. c. 71.
Rating and Valuation Act 1925	15 & 16 Geo. 5. c. 90.
Petroleum (Consolidation) Act 1928	18 & 19 Geo. 5. c. 32.
Local Government Act 1929	19 & 20 Geo. 5. c. 17.
Road Traffic Act 1930	20 & 21 Geo. 5. c. 43.
Preston Corporation Act 1931	21 & 22 Geo. 5. c. xiii.
Preston Corporation Act 1933	23 & 24 Geo. 5. c. ix.
Local Government Act 1933	23 & 24 Geo. 5. c. 51.
Trunk Roads Act 1936	1 Edw. 8. & 1 Geo. 6. c. 5.
Public Health Act 1936	26 Geo. 5. & 1 Edw. 8. c. 49.
Factories Act 1937	1 Edw. 8. & 1 Geo. 6. c. 67.
Hire Purchase Act 1938	1 & 2 Geo. 6. c. 53.
Food and Drugs Act 1938	1 & 2 Geo. 6. c. 56.
Town and Country Planning Act 1944 ...	7 & 8 Geo. 6. c. 47.
Water Act 1945	8 & 9 Geo. 6. c. 42.
Dock Workers (Regulation of Employment) Act 1946	9 & 10 Geo. 6. c. 22.
Trunk Roads Act 1946	9 & 10 Geo. 6. c. 30.
Acquisition of Land (Authorisation Procedure) Act 1946	9 & 10 Geo. 6. c. 49.
Preston Corporation Act 1947	10 & 11 Geo. 6. c. xlv.
Transport Act 1947	10 & 11 Geo. 6. c. 49.
Town and Country Planning Act 1947 ...	10 & 11 Geo. 6. c. 51.
Electricity Act 1947	10 & 11 Geo. 6. c. 54.
National Assistance Act 1948	11 & 12 Geo. 6. c. 29.
Special Roads Act 1949	12 13 & 14 Geo. 6. c. 32.
Lands Tribunal Act 1949	12 13 & 14 Geo. 6. c. 42.
Civil Aviation Act 1949	12 13 & 14 Geo. 6. c. 67.

Short title	Session and chapter
Arbitration Act 1950	14 Geo. 6. c. 27.
Food and Drugs (Milk Dairies and Artificial Cream) Act 1950	14 Geo. 6. c. 35.
Public Utilities Street Works Act 1950 ...	14 Geo. 6. c. 39.
Town and Country Planning Act 1951	14 & 15 Geo. 6. c. 19.

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